



Deddf Senedd ac Etholiadau (Cymru) 2020

2020 dccc 1

Senedd and Elections (Wales) Act 2020

2020 anaw 1

Lluniwyd Nodiadau Esboniadol yn gymorth i ddeall y Ddeddf hon ac maent ar gael ar wahân.

Explanatory Notes have been produced to assist in the understanding of this Act and are available separately.



Deddf Senedd ac Etholiadau (Cymru) 2020

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Senedd and Elections (Wales) Act 2020

2020 anaw 1

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Deddf Senedd ac Etholiadau (Cymru) 2020

Deddf Cynulliad Cenedlaethol Cymru i ailenwi Cynulliad Cenedlaethol Cymru, i estyn yr hawl i bleidleisio yn etholiadau'r Senedd, i ddiwygio'r gyfraith sy'n ymwneud ag anghymhwyso rhag bod yn Aelod o'r Senedd, i wneud darpariaeth ynghylch goruchwyllo gwaith y Comisiwn Etholiadol, i wneud newidiadau amrywiol i'r gyfraith sy'n ymwneud â llywodraethu Cymru, ac at ddibenion cysylltiedig. [15 Ionawr 2020]

Gan ei fod wedi ei basio gan Gynulliad Cenedlaethol Cymru ac wedi derbyn cydsyniad Ei Mawrhydi, deddfir fel a ganlyn:

RHAN 1

TROSOLWG

1 Trosolwg o'r Ddeddf hon

- (1) Mae Rhan 2 o'r Ddeddf hon yn newid enw Cynulliad Cenedlaethol Cymru i "Senedd Cymru" neu "the Welsh Parliament" ac yn gwneud newidiadau cysylltiedig.
- (2) Mae Rhan 3 o'r Ddeddf hon yn estyn yr hawl i bleidleisio yn etholiadau'r Senedd i bersonau 16 a 17 oed a dinasyddion tramor cymhwysol ac yn gwneud newidiadau cysylltiedig i gofrestru etholiadol. Mae hefyd yn gwneud darpariaeth ynghylch y trefniadau ariannol a goruchwyllo ar gyfer gwaith y Comisiwn Etholiadol mewn perthynas ag etholiadau datganoledig Cymru a refferenda datganoledig.
- (3) Mae Rhan 4 o'r Ddeddf hon yn diwygio'r gyfraith sy'n ymwneud â phersonau sydd wedi eu hanghymhwyso rhag bod yn Aelodau o'r Senedd.
- (4) Mae Rhan 5 o'r Ddeddf hon yn cynnwys darpariaethau amrywiol o ran y Senedd a'r etholiadau iddi sydd –
 - (a) yn estyn yr amser pryd y mae'n rhaid cynnal cyfarfod cyntaf y Senedd ar ôl etholiad cyffredinol;
 - (b) yn egluro pwerau Comisiwn y Senedd i godi tâl am ddarparu nwyddau a gwasanaethau;



Senedd and Elections (Wales) Act 2020

An Act of the National Assembly for Wales to rename the National Assembly for Wales, to extend the right to vote in Senedd elections, to amend the law relating to disqualification from membership of the Senedd, to make provision regarding oversight of the work of the Electoral Commission, to make miscellaneous changes to the law relating to the government of Wales and for related purposes. [15 January 2020]

Having been passed by the National Assembly for Wales and having received the assent of Her Majesty, it is enacted as follows:

PART 1

OVERVIEW

1 Overview of this Act

- (1) Part 2 of this Act changes the name of the National Assembly for Wales to “Senedd Cymru” or “the Welsh Parliament” and makes connected changes.
- (2) Part 3 of this Act extends the right to vote for elections to the Senedd to persons aged 16 and 17 and qualifying foreign citizens and makes related changes to electoral registration. It also makes provision about the financial and oversight arrangements for the work of the Electoral Commission in relation to devolved Welsh elections and devolved referendums.
- (3) Part 4 of this Act amends the law relating to persons disqualified from membership of the Senedd.
- (4) Part 5 of this Act contains miscellaneous provisions regarding the Senedd and Senedd elections that—
 - (a) extend the time within which the first meeting of the Senedd after a general election must be held;
 - (b) clarify the powers of the Senedd Commission to charge for the provision of goods and services;

- (c) yn ei gwneud yn ofynnol i Weinidogion Cymru adrodd ar weithrediad y darpariaethau yn y Ddeddf hon sy'n estyn yr hawl i bleidleisio ac sy'n newid cymhwysra i fod yn Aelod o'r Senedd.
- (5) Mae Rhan 6 o'r Ddeddf hon yn cynnwys darpariaethau cyffredinol ynghylch dehongli'r Ddeddf hon, dod â darpariaethau'r Ddeddf i rym, a'r enw byr.

RHAN 2

AILENWI CYNULLIAD CENEDLAETHOL CYMRU ETC.

2 Ailenwi Cynulliad Cenedlaethol Cymru yn Senedd Cymru neu Welsh Parliament

Yn adran 1(1) o Ddeddf Llywodraeth Cymru 2006 (p. 32) ("Deddf 2006"), yn lle "the National Assembly for Wales" hyd at y diwedd rhodder "Senedd Cymru or the Welsh Parliament (referred to in this Act as "the Senedd")".

3 Ailenwi Deddfau Cynulliad Cenedlaethol Cymru yn Ddeddfau Senedd Cymru

Yn adran 107(1) o Ddeddf 2006, yn lle "the National Assembly for Wales" hyd at y diwedd rhodder "Senedd Cymru or Deddfau Senedd Cymru (referred to in this Act as "Acts of the Senedd")".

4 Galw aelodau yn Aelodau o'r Senedd

Yn adran 1 o Ddeddf 2006, ar ôl is-adran (2) mewnosoder—

"(2A) Members of the Senedd are to be known by that name or as Aelodau o'r Senedd."

5 Ailenwi Clerc y Cynulliad yn Glerc y Senedd

Yn adran 26(2) o Ddeddf 2006, yn lle "Assembly" rhodder "Senedd, Clerc y Senedd".

6 Ailenwi Comisiwn Cynulliad Cenedlaethol Cymru yn Gomisiwn y Senedd

Yn adran 27(1) o Ddeddf 2006, yn lle "National Assembly for Wales Commission or Comisiwn Cynulliad Cenedlaethol Cymru" rhodder "Senedd Commission or Comisiwn y Senedd".

7 Ailenwi Comisiynydd Safonau Cynulliad Cenedlaethol Cymru yn Gomisiynydd Safonau y Senedd

Yn adran 1(1) o Fesur Comisiynydd Safonau Cynulliad Cenedlaethol Cymru 2009 (mccc 4), yn lle "Cynulliad Cenedlaethol Cymru" rhodder "y Senedd".

8 Ailenwi Bwrdd Taliadau Cynulliad Cenedlaethol Cymru yn Fwrdd Taliadau Annibynnol y Senedd

Yn adran 1(1) o Fesur Cynulliad Cenedlaethol Cymru (Taliadau) 2010 (mccc 4), yn lle "Bwrdd Taliadau Cynulliad Cenedlaethol Cymru" rhodder "bwrdd i'w alw'n Fwrdd Taliadau Annibynnol y Senedd".

- (c) require the Welsh Ministers to report on the operation of the provisions of this Act that extend the right to vote and change qualification for membership of the Senedd.
- (5) Part 6 of this Act contains general provisions about the interpretation of this Act, the coming into force of the provisions of the Act, and the short title.

PART 2

RENAMING OF THE NATIONAL ASSEMBLY FOR WALES ETC.

2 National Assembly for Wales renamed Senedd Cymru or Welsh Parliament

In section 1(1) of the Government of Wales Act 2006 (c. 32) (“the 2006 Act”) for “the National Assembly for Wales” to the end substitute “Senedd Cymru or the Welsh Parliament (referred to in this Act as “the Senedd”)”.

3 Acts of the National Assembly for Wales renamed Acts of Senedd Cymru

In section 107(1) of the 2006 Act, for “the National Assembly for Wales” to the end substitute “Senedd Cymru or Deddfau Senedd Cymru (referred to in this Act as “Acts of the Senedd”)”.

4 Members to be known as Members of the Senedd

In section 1 of the 2006 Act, after subsection (2) insert –

“(2A) Members of the Senedd are to be known by that name or as Aelodau o’r Senedd.”

5 Clerk of the Assembly renamed Clerk of the Senedd

In section 26(2) of the 2006 Act, for “Assembly” substitute “Senedd, Clerc y Senedd”.

6 National Assembly for Wales Commission renamed Senedd Commission

In section 27(1) of the 2006 Act, for “National Assembly for Wales Commission or Comisiwn Cynulliad Cenedlaethol Cymru” substitute “Senedd Commission or Comisiwn y Senedd”.

7 National Assembly for Wales Commissioner for Standards renamed Senedd Commissioner for Standards

In section 1(1) of the National Assembly for Wales Commissioner for Standards Measure 2009 (nawm 4), for “National Assembly for Wales” substitute “Senedd”.

8 National Assembly for Wales Remuneration Board renamed the Independent Remuneration Board of the Senedd

In section 1(1) of the National Assembly for Wales (Remuneration) Measure 2010 (nawm 4), for “National Assembly for Wales Remuneration Board” substitute “board to be known as the Independent Remuneration Board of the Senedd”.

9 Mân ddiwygiadau a diwygiadau canlyniadol

Mae Atodlen 1 yn cynnwys mân ddiwygiadau a diwygiadau canlyniadol sy'n ymwneud â'r Rhan hon.

RHAN 3**ETHOLIADAU***Estyn yr hawl i bleidleisio***10 Estyn yr hawl i bleidleisio yn etholiadau'r Senedd i bersonau 16 a 17 oed**

- (1) Mae adran 12 (yr hawl i bleidleisio) o Ddeddf 2006 wedi ei diwygio fel a ganlyn.
- (2) Yn is-adran (1)(a), ar ôl "constituency" mewnosoder "or fall within the extended franchise for Senedd elections as described in this section".
- (3) Ar ôl is-adran (1), mewnosoder —
 - “(1A) A person falls within the extended franchise for Senedd elections if the person —
 - (a) has attained the age of 16, but not the age of 18, and
 - (b) would, but for any disability removed by this section, be entitled to vote as an elector at a local government election in an electoral area wholly or partly included within the Senedd constituency.”
- (4) Mae'r diwygiadau a wneir gan yr adran hon yn cael effaith at ddibenion etholiad i fod yn Aelod o'r Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny.

11 Estyn yr hawl i bleidleisio yn etholiadau'r Senedd i ddinasyddion tramor cymhwysol

- (1) Ar ôl adran 12(1A) o Ddeddf 2006, mewnosoder —
 - “(1B) A person falls within the extended franchise for Senedd elections if the person —
 - (a) is a qualifying foreign citizen (within the meaning given by section 203(1) of the Representation of the People Act 1983 (c. 2)), and
 - (b) would, but for any disability removed by this section, be entitled to vote as an elector at a local government election in an electoral area wholly or partly included within the Senedd constituency.”
- (2) Mae'r diwygiadau a wneir gan yr adran hon yn cael effaith at ddibenion etholiad i fod yn Aelod o'r Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny.

9 Minor and consequential amendments

Schedule 1 contains minor and consequential amendments relating to this Part.

PART 3**ELECTIONS***Extension of right to vote***10 Extension of right to vote in Senedd elections to 16 and 17 year old persons**

- (1) Section 12 (entitlement to vote) of the 2006 Act is amended as follows.
- (2) In subsection (1)(a), after “constituency” insert “or fall within the extended franchise for Senedd elections as described in this section”.
- (3) After subsection (1), insert –
 - “(1A) A person falls within the extended franchise for Senedd elections if the person –
 - (a) has attained the age of 16, but not the age of 18, and
 - (b) would, but for any disability removed by this section, be entitled to vote as an elector at a local government election in an electoral area wholly or partly included within the Senedd constituency.”
- (4) The amendments made by this section have effect for the purposes of an election for membership of the Senedd at which the poll is held on or after 5 April 2021.

11 Extension of right to vote in Senedd elections to qualifying foreign citizens

- (1) After section 12(1A) of the 2006 Act, insert –
 - “(1B) A person falls within the extended franchise for Senedd elections if the person –
 - (a) is a qualifying foreign citizen (within the meaning given by section 203(1) of the Representation of the People Act 1983 (c. 2)), and
 - (b) would, but for any disability removed by this section, be entitled to vote as an elector at a local government election in an electoral area wholly or partly included within the Senedd constituency.”
- (2) The amendments made by this section have effect for the purposes of an election for membership of the Senedd at which a poll is held on or after 5 April 2021.

*Cofrestru etholiadol***12 Yr hawl i gofrestru yn etholwr llywodraeth leol**

- (1) Yn adran 4 o Ddeddf Cynrychiolaeth y Bobl 1983 (p. 2) ("Deddf 1983") (yr hawl i gofrestru yn etholwr llywodraeth leol) –
- (a) yn is-adran (3)(d), ar ôl "age" mewnosoder "or, if resident in an area in Wales, is 16 years of age or over";
 - (b) ar ôl is-adran (3) mewnosoder –
 - "(3A) A person is also entitled to be registered in the register of local government electors for any electoral area in Wales if on the relevant date the person –
 - (a) is resident in that area,
 - (b) is not subject to any legal incapacity to vote (age apart) in an election of members (or of a member) of Senedd Cymru,
 - (c) is a qualifying foreign citizen, and
 - (d) is 16 years of age or over."
 - (c) ar ôl is-adran (5A) mewnosoder –
 - "(5B) In relation to a register of local government electors for any electoral area in Wales, the reference to "voting age" in subsection (5) is to be interpreted as "16 years of age"."
- (2) Yn adran 203(1) o Ddeddf 1983 (darpariaethau llywodraeth leol o ran Cymru a Lloegr) ar ôl y diffiniad o "London member" mewnosoder –
- "qualifying foreign citizen" means a person who –
 - (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a relevant citizen of the Union, and
 - (b) either –
 - (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) any description of such leave."

13 Canfasio blynyddol

- (1) Yn adran 9A o Ddeddf 1983 (swyddogion cofrestru: dyletswydd i gymryd camau angenrheidiol), ar ôl is-adran (2) mewnosoder –
- "(2A) In relation to the registration of local government electors in Wales, subsections (1) and (2)(b) do not require a registration officer to make house to house inquiries in relation to any person under the age of 16."
- (2) Yn rheoliad 32ZA o Reoliadau Cynrychiolaeth y Bobl (Cymru a Lloegr) 2001 (O.S. 2001/341) ("Rheoliadau 2001") (ffurflen ganfasio blynyddol) –

*Electoral registration***12 Entitlement to be registered as a local government elector**

- (1) In section 4 of the Representation of the People Act 1983 (c. 2) (“the 1983 Act”) (entitlement to be registered as a local government elector) –
 - (a) in subsection (3)(d), after “age” insert “or, if resident in an area in Wales, is 16 years of age or over”;
 - (b) after subsection (3) insert –

“(3A) A person is also entitled to be registered in the register of local government electors for any electoral area in Wales if on the relevant date the person –

 - (a) is resident in that area,
 - (b) is not subject to any legal incapacity to vote (age apart) in an election of members (or of a member) of Senedd Cymru,
 - (c) is a qualifying foreign citizen, and
 - (d) is 16 years of age or over.”;
 - (c) after subsection (5A) insert –

“(5B) In relation to a register of local government electors for any electoral area in Wales, the reference to “voting age” in subsection (5) is to be interpreted as “16 years of age”.”
- (2) In section 203(1) of the 1983 Act (local government provisions as to England and Wales) after the definition of “London member” insert –

““qualifying foreign citizen” means a person who –

 - (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a relevant citizen of the Union, and
 - (b) either –
 - (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) any description of such leave.”

13 Annual canvass

- (1) In section 9A of the 1983 Act (registration officers: duty to take necessary steps), after subsection (2) insert –

“(2A) In relation to the registration of local government electors in Wales, subsections (1) and (2)(b) do not require a registration officer to make house to house inquiries in relation to any person under the age of 16.”
- (2) In regulation 32ZA of the Representation of the People (England and Wales) Regulations 2001 (S.I. 2001/341) (“the 2001 Regulations”) (annual canvass form) –

(a) ar ôl paragraff (3) mewnosoder –

“(3A) In relation to the registration of local government electors in Wales, the canvass form in paragraph (2) must also –

- (a) require the full name and nationality of each person aged 14 or 15 who is eligible to register and is residing at the address to which the form is given, and
- (b) in relation to any such person named in the form, require the person’s date of birth to be included.”;

(b) ar ôl paragraff (5) mewnosoder –

“(5A) In relation to the registration of local government electors in Wales, the registration officer must not, under paragraph (5), print on the form the date of birth of any person aged under 16.”

14 Gwahoddiadau i gofrestru

(1) Yn adran 9E o Ddeddf 1983 (cynnal cofrestrau: gwahoddiadau i gofrestru ym Mhrydain Fawr), ar ôl is-adran (7) mewnosoder –

“(7A) In relation to the registration of local government electors in Wales, subsection (7) does not apply to a person who was under the age of 16 at the time the requirement was imposed.”

(2) Yn rheoliad 32ZC o Reoliadau 2001 (gwahoddiadau i wneud cais i gofrestru), ar ôl paragraff (2) mewnosoder –

“(2A) In relation to the registration of local government electors in Wales, where the person to be invited is under the age of 16, the invitation in paragraph (1) must also include an explanation of how the person’s information will be held and used.”

(3) Yn rheoliad 32ZD o Reoliadau 2001 (camau i’w cymryd gan swyddog cofrestru i annog person i wneud cais i gofrestru mewn ymateb i wahoddiad i wneud hynny), ar ôl paragraff (3) mewnosoder –

“(3A) In relation to the registration of local government electors in Wales, paragraph (3) does not require a registration officer to make, or have made, any visits in the case where the invitations were given to a person under the age of 16.”

(4) Yn rheoliad 32ZE o Reoliadau 2001 (ei gwneud yn ofynnol i berson wneud cais i gofrestru), ar ôl paragraff (3) mewnosoder –

“(3A) In relation to the registration of local government electors in Wales, the following provisions of this regulation do not apply in the case of a person who is under the age of 16 –

- (a) paragraphs (2)(b)(iii) and (3)(b) and (c);
- (b) paragraph (3)(f), so far as requiring a notice to state that the person may make representations about why a civil penalty should not be imposed.”

(a) after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, the canvass form in paragraph (2) must also –

- (a) require the full name and nationality of each person aged 14 or 15 who is eligible to register and is residing at the address to which the form is given, and
- (b) in relation to any such person named in the form, require the person’s date of birth to be included.”;

(b) after paragraph (5) insert –

“(5A) In relation to the registration of local government electors in Wales, the registration officer must not, under paragraph (5), print on the form the date of birth of any person aged under 16.”

14 Invitations to register

(1) In section 9E of the 1983 Act (maintenance of registers: invitations to register in Great Britain), after subsection (7) insert –

“(7A) In relation to the registration of local government electors in Wales, subsection (7) does not apply to a person who was under the age of 16 at the time the requirement was imposed.”

(2) In regulation 32ZC of the 2001 Regulations (invitations to apply for registration), after paragraph (2) insert –

“(2A) In relation to the registration of local government electors in Wales, where the person to be invited is under the age of 16, the invitation in paragraph (1) must also include an explanation of how the person’s information will be held and used.”

(3) In regulation 32ZD of the 2001 Regulations (steps to be taken by a registration officer to encourage a person to make an application for registration in response to an invitation to do so), after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, paragraph (3) does not require a registration officer to make, or have made, any visits in the case where the invitations were given to a person under the age of 16.”

(4) In regulation 32ZE of the 2001 Regulations (requiring a person to make an application for registration), after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, the following provisions of this regulation do not apply in the case of a person who is under the age of 16 –

- (a) paragraphs (2)(b)(iii) and (3)(b) and (c);
- (b) paragraph (3)(f), so far as requiring a notice to state that the person may make representations about why a civil penalty should not be imposed.”

15 Gwahoddiadau i gofrestru: darpariaeth bellach am bersonau o dan 16 oed

- (1) Caiff Gweinidogion Cymru, drwy reoliadau, wneud darpariaeth am wahoddiadau i'w rhoi o dan adran 9E(1) o Ddeddf 1983 (gwahoddiadau i wneud cais i gofrestru) mewn perthynas â chofrestru etholwyr llywodraeth leol yng Nghymru.
- (2) Caiff rheoliadau o dan is-adran (1) (ymhlith pethau eraill) gynnwys darpariaeth—
 - (a) ynghylch ffurf a chynnwys gwahoddiadau;
 - (b) ynghylch sut a phryd y mae'n rhaid rhoi gwahoddiadau;
 - (c) sy'n ei gwneud yn ofynnol bod ffurflenni cais neu ddogfennau eraill (gan gynnwys ffurflenni cais a gwblhawyd yn rhannol) yn cyd-fynd â gwahoddiadau, neu'n cael eu cyfuno â gwahoddiadau.
- (3) Caiff rheoliadau o dan is-adran (1) roi swyddogaethau i'r Comisiwn Etholiadol (er enghraifft, gallai fod yn ofynnol i'r Comisiwn ddylunio gwahoddiad).
- (4) Caiff rheoliadau o dan is-adran (1) ddiwygio, diddymu (neu ddirymu) neu addasu unrhyw ddeddfiad.
- (5) Cyn gwneud rheoliadau o dan is-adran (1), rhaid i Weinidogion Cymru ymgynghori â'r cyfryw bersonau sy'n briodol yn eu barn hwy.

16 Ceisiadau i gofrestru

- (1) Mae Rheoliadau 2001 wedi eu diwygio fel a ganlyn.
- (2) Yn rheoliad 24 (tystiolaeth o ran oedran a chenedligrwydd), ar ôl "Union" mewnosoder "or (for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen".
- (3) Yn rheoliad 26 (ceisiadau i gofrestru)—
 - (a) ar ôl paragraff (1) mewnosoder—

“(1A) In relation to the registration of local government electors in Wales, where the applicant is not able to provide the applicant's date of birth, the statement referred to in paragraph (1)(e) must indicate whether the applicant is—

 - (a) under the age of 16,
 - (b) aged 16 or 17, or
 - (c) aged 18 or over.”;
 - (b) ym mharagraff (3), ar ôl "(1)" mewnosoder ", (1A)";
 - (c) ym mharagraff (3)(ba), ar ôl "Union" mewnosoder "or (for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen";
 - (d) ar ôl paragraff (3) mewnosoder—

“(3A) In relation to the registration of local government electors in Wales, the paper application form under paragraph (3) must also include an explanation of how information about applicants under the age of 16 will be held and used.”;

15 Invitations to register: further provision about persons under the age of 16

- (1) The Welsh Ministers may, by regulations, make provision about invitations to be given under section 9E(1) of the 1983 Act (invitations to apply for registration) in relation to the registration of local government electors in Wales.
- (2) Regulations under subsection (1) may (among other things) include provision –
 - (a) about the form and content of invitations;
 - (b) about how and when invitations must be given;
 - (c) requiring invitations to be accompanied by, or combined with, application forms or other documents (including partially completed application forms).
- (3) Regulations under subsection (1) may confer functions on the Electoral Commission (for example, the Commission may be required to design an invitation).
- (4) Regulations under subsection (1) may amend, repeal (or revoke) or modify any enactment.
- (5) Before making regulations under subsection (1), the Welsh Ministers must consult such persons as they consider appropriate.

16 Applications for registration

- (1) The 2001 Regulations are amended as follows.
- (2) In regulation 24 (evidence as to age and nationality), after “Union” insert “or (for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”.
- (3) In regulation 26 (applications for registration) –
 - (a) after paragraph (1) insert –

“(1A) In relation to the registration of local government electors in Wales, where the applicant is not able to provide the applicant’s date of birth, the statement referred to in paragraph (1)(e) must indicate whether the applicant is –

 - (a) under the age of 16,
 - (b) aged 16 or 17, or
 - (c) aged 18 or over.”;
 - (b) in paragraph (3), after “(1)” insert “, (1A)”;
 - (c) in paragraph (3)(ba), after “Union” insert “or (for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”;
 - (d) after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, the paper application form under paragraph (3) must also include an explanation of how information about applicants under the age of 16 will be held and used.”;

(e) ar ôl paragraff (9) mewnosoder –

“(9A) In relation to the registration of local government electors in Wales, paragraphs (1)(f) and (8)(a) do not apply in the case where the applicant is under the age of 16.”

(4) Yn rheoliad 26B (pŵer i ofyn am dystiolaeth ychwanegol lle nad oes gwybodaeth benodol ar gael neu lle bo’r swyddog cofrestru o’r farn bod y dystiolaeth yn angenrheidiol), ar ôl paragraff (6) mewnosoder –

“(6A) In relation to the registration of local government electors in Wales, paragraphs (2) to (6) do not apply in the case where the applicant is under the age of 16 if –

(a) there is information available to the registration officer from any educational record relating to the applicant, and

(b) that information is sufficient to satisfy the registration officer as to the applicant’s identity and entitlement to be registered.”

(5) Yn rheoliad 28 (archwilio ceisiadau a gwrthwynebiadau), ar ôl paragraff (2) mewnosoder –

“(3) In relation to the registration of local government electors in Wales, this regulation does not apply to an application made by a person under the age of 16.”

(6) Yn rheoliad 29ZA (gwirio gwybodaeth a ddarparwyd mewn cais), ar ôl paragraff (6) mewnosoder –

“(6A) In relation to the registration of local government electors in Wales, this regulation does not apply to an application made by a person under the age of 16.”

17 Adolygu’r hawl i gofrestru

(1) Mae Rheoliadau 2001 wedi eu diwygio fel a ganlyn.

(2) Yn rheoliad 31D (gweithdrefn ar gyfer adolygu’r hawl i gofrestru), ar ôl paragraff (3) mewnosoder –

“(3A) In relation to the registration of local government electors in Wales, paragraph (2)(b) does not apply where the subject of the review is under the age of 16.”

(3) Yn rheoliad 31E (rhestr o adolygiadau), ar ôl paragraff (4) mewnosoder –

“(5) In relation to the registration of local government electors in Wales, this regulation does not apply to any review where the subject of the review is under the age of 16.”

18 Cofrestru’n ddienw

Yn rheoliad 31J o Reoliadau 2001 (cofrestru’n ddienw: tystiolaeth drwy ardystio), ar ôl paragraff (5) mewnosoder –

(e) after paragraph (9) insert –

“(9A) In relation to the registration of local government electors in Wales, paragraphs (1)(f) and (8)(a) do not apply in the case where the applicant is under the age of 16.”

(4) In regulation 26B (power to request additional evidence where certain information is unavailable or where the registration officer considers it necessary), after paragraph (6) insert –

“(6A) In relation to the registration of local government electors in Wales, paragraphs (2) to (6) do not apply in the case where the applicant is under the age of 16 if –

- (a) there is information available to the registration officer from any educational record relating to the applicant, and
- (b) that information is sufficient to satisfy the registration officer as to the applicant’s identity and entitlement to be registered.”

(5) In regulation 28 (inspection of applications and objections), after paragraph (2) insert –

“(3) In relation to the registration of local government electors in Wales, this regulation does not apply to an application made by a person under the age of 16.”

(6) In regulation 29ZA (verification of information provided in an application), after paragraph (6) insert –

“(6A) In relation to the registration of local government electors in Wales, this regulation does not apply to an application made by a person under the age of 16.”

17 Review of entitlement to registration

(1) The 2001 Regulations are amended as follows.

(2) In regulation 31D (procedure for reviewing entitlement to registration), after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, paragraph (2)(b) does not apply where the subject of the review is under the age of 16.”

(3) In regulation 31E (list of reviews), after paragraph (4) insert –

“(5) In relation to the registration of local government electors in Wales, this regulation does not apply to any review where the subject of the review is under the age of 16.”

18 Anonymous registration

In regulation 31J of the 2001 Regulations (anonymous registration: evidence by attestation), after paragraph (5) insert –

- “(6) In relation to the registration of local government electors in Wales, where the applicant is under the age of 16 on the date on which the application is made—
- (a) “qualifying officer” also includes a person authorised in writing for the purposes of this regulation by an officer referred to in paragraph (4)(h), and
 - (b) where the attestation is signed by a person so authorised, the attestation must be accompanied by a copy of the person’s authorisation.”

19 Datganiadau o gysylltiad lleol

- (1) Mae adran 7B o Ddeddf 1983 (preswylfa dybiannol: datganiadau o gysylltiad lleol) wedi ei diwygio fel a ganlyn.
- (2) Ar ôl is-adran (2) mewnosoder—
 - “(2A) In relation to the registration of local government electors in Wales, this section also applies to a person who, on the date on which the person makes a declaration under subsection (1)—
 - (a) is under 18 years of age,
 - (b) does not fall within any of the paragraphs (a) to (c) of subsection (2), and
 - (c) meets any of the requirements specified in subsection (2B).
 - (2B) The requirements are that—
 - (a) the person is, or has been, a child who is looked after by a local authority, or
 - (b) the person is being kept in any secure accommodation specified in regulations made by the Welsh Ministers in circumstances specified in the regulations.
 - (2C) The power to make regulations under subsection (2B)(b) is exercisable by statutory instrument and is subject to annulment in pursuance of a resolution of the Senedd.
 - (2D) In subsection (2B)—
 - (a) the reference to a child who is looked after by a local authority has the same meaning as in the Social Services and Well-being (Wales) Act 2014 (anaw 1) (see section 74);
 - (b) “secure accommodation” means accommodation for the purpose of restricting the liberty of persons under the age of 18.”
- (3) Yn is-adran (3)(e), ar ôl “Union” mewnosoder “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”.
- (4) Yn is-adran (4), ar ôl paragraff (b) mewnosoder—

“(6) In relation to the registration of local government electors in Wales, where the applicant is under the age of 16 on the date on which the application is made—

- (a) “qualifying officer” also includes a person authorised in writing for the purposes of this regulation by an officer referred to in paragraph (4)(h), and
- (b) where the attestation is signed by a person so authorised, the attestation must be accompanied by a copy of the person’s authorisation.”

19 Declarations of local connection

(1) Section 7B of the 1983 Act (notional residence: declarations of local connection) is amended as follows.

(2) After subsection (2) insert—

“(2A) In relation to the registration of local government electors in Wales, this section also applies to a person who, on the date on which the person makes a declaration under subsection (1)—

- (a) is under 18 years of age,
- (b) does not fall within any of the paragraphs (a) to (c) of subsection (2), and
- (c) meets any of the requirements specified in subsection (2B).

(2B) The requirements are that—

- (a) the person is, or has been, a child who is looked after by a local authority, or
- (b) the person is being kept in any secure accommodation specified in regulations made by the Welsh Ministers in circumstances specified in the regulations.

(2C) The power to make regulations under subsection (2B)(b) is exercisable by statutory instrument and is subject to annulment in pursuance of a resolution of the Senedd.

(2D) In subsection (2B)—

- (a) the reference to a child who is looked after by a local authority has the same meaning as in the Social Services and Well-being (Wales) Act 2014 (anaw 1) (see section 74);
- (b) “secure accommodation” means accommodation for the purpose of restricting the liberty of persons under the age of 18.”

(3) In subsection (3)(e), after “Union” insert “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”.

(4) In subsection (4), after paragraph (b) insert—

“(c) in the case of a person falling within subsection (2A), any of the following—

- (i) an address in Wales at which the person has previously been resident, or
- (ii) an address used by a council of a county or county borough in Wales in which the person has previously been resident.”

(5) Ar ôl is-adran (7) mewnosoder—

“(7A) Despite anything in subsection (7), in relation to Wales, a relevant declaration made by a person has effect only for the person’s registration as a local government elector.

(7B) In subsection (7A) a “relevant declaration” means—

- (a) a declaration of local connection made by virtue of subsection (2A);
- (b) a declaration of local connection made by a qualifying foreign citizen;
- (c) any other declaration of local connection made by a person who, on the date on which the declaration is made, is—
 - (i) under the age of 17, and
 - (ii) not entitled to be registered in the register of parliamentary electors.

(7C) A relevant declaration referred to in subsection (7A) must be marked to show that it is available only for the purposes of registration as a local government elector, but otherwise is to be the same as other declarations of local connection.”

20 Datganiadau o wasanaeth

(1) Mae Deddf 1983 wedi ei diwygio fel a ganlyn.

(2) Yn adran 14 (cymhwyster gwasanaeth), ar ôl is-adran (1) mewnosoder—

“(1A) In relation to the registration of local government electors in Wales, a person also has a service qualification for the purposes of this Act if—

- (a) the person is under the age of 18,
- (b) a parent or guardian of the person has a service qualification under any of paragraphs (a) to (e) of subsection (1), and
- (c) the person is residing at a particular place in order to be with that parent or guardian.”

(3) Yn adran 15 (datganiad o wasanaeth)—

(a) ar ôl is-adran (3) mewnosoder—

“(c) in the case of a person falling within subsection (2A), any of the following—

- (i) an address in Wales at which the person has previously been resident, or
- (ii) an address used by a council of a county or county borough in Wales in which the person has previously been resident.”

(5) After subsection (7) insert—

“(7A) Despite anything in subsection (7), in relation to Wales, a relevant declaration made by a person has effect only for the person’s registration as a local government elector.

(7B) In subsection (7A) a “relevant declaration” means—

- (a) a declaration of local connection made by virtue of subsection (2A);
- (b) a declaration of local connection made by a qualifying foreign citizen;
- (c) any other declaration of local connection made by a person who, on the date on which the declaration is made, is—
 - (i) under the age of 17, and
 - (ii) not entitled to be registered in the register of parliamentary electors.

(7C) A relevant declaration referred to in subsection (7A) must be marked to show that it is available only for the purposes of registration as a local government elector, but otherwise is to be the same as other declarations of local connection.”

20 Service declarations

(1) The 1983 Act is amended as follows.

(2) In section 14 (service qualification), after subsection (1) insert—

“(1A) In relation to the registration of local government electors in Wales, a person also has a service qualification for the purposes of this Act if—

- (a) the person is under the age of 18,
- (b) a parent or guardian of the person has a service qualification under any of paragraphs (a) to (e) of subsection (1), and
- (c) the person is residing at a particular place in order to be with that parent or guardian.”

(3) In section 15 (service declaration)—

- (a) after subsection (3) insert—

- “(3A) In relation to the registration of local government electors in Wales, a service declaration made by a person by virtue of a service qualification under section 14(1A) ceases to have effect when the person attains the age of 18.
- (3B) Without prejudice to subsection (2), a person registered in a register of local government electors in Wales in pursuance of a service declaration referred to in subsection (3A) ceases to be entitled to remain so registered when the person attains the age of 18.
- (3C) Where a person’s entitlement to remain registered ceases under subsection (3B), the registration officer must remove the person’s entry from the register.”;
- (b) ar ôl is-adran (5) mewnosoder –
 - “(5A) Despite anything in subsection (5), in relation to Wales, a relevant service declaration made by a person has effect only for the purposes of the person’s registration as a local government elector.
 - (5B) In subsection (5A), “relevant service declaration” means –
 - (a) a service declaration made by virtue of a service qualification under section 14(1A);
 - (b) a service declaration made by a qualifying foreign citizen;
 - (c) any other service declaration made by a person who, on the date on which the declaration is made, is –
 - (i) under the age of 17, and
 - (ii) not entitled to be registered in the register of parliamentary electors.
 - (5C) A relevant service declaration referred to in subsection (5A) must be marked to show that it is available only for the purposes of registration as a local government elector, but otherwise is to be the same as other service declarations.”
- (4) Yn adran 16 (cynnwys datganiad o wasanaeth) –
 - (a) mae’r testun presennol yn dod yn is-adran (1);
 - (b) yn yr is-adran honno, ym mharagraff (e), ar ôl “Union” mewnosoder “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”;
 - (c) ar ôl yr is-adran honno mewnosoder –
 - “(2) In relation to the registration of local government electors in Wales, a service declaration made by a person claiming to have a service qualification under section 14(1A) does not require to be attested.”
- (5) Yn adran 17 (effaith datganiad o wasanaeth) –
 - (a) yn is-adran (1)(c), ar ôl “Union” mewnosoder “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”;

- “(3A) In relation to the registration of local government electors in Wales, a service declaration made by a person by virtue of a service qualification under section 14(1A) ceases to have effect when the person attains the age of 18.
 - (3B) Without prejudice to subsection (2), a person registered in a register of local government electors in Wales in pursuance of a service declaration referred to in subsection (3A) ceases to be entitled to remain so registered when the person attains the age of 18.
 - (3C) Where a person’s entitlement to remain registered ceases under subsection (3B), the registration officer must remove the person’s entry from the register.”;
 - (b) after subsection (5) insert –
 - “(5A) Despite anything in subsection (5), in relation to Wales, a relevant service declaration made by a person has effect only for the purposes of the person’s registration as a local government elector.
 - (5B) In subsection (5A), “relevant service declaration” means –
 - (a) a service declaration made by virtue of a service qualification under section 14(1A);
 - (b) a service declaration made by a qualifying foreign citizen;
 - (c) any other service declaration made by a person who, on the date on which the declaration is made, is –
 - (i) under the age of 17, and
 - (ii) not entitled to be registered in the register of parliamentary electors.
 - (5C) A relevant service declaration referred to in subsection (5A) must be marked to show that it is available only for the purposes of registration as a local government elector, but otherwise is to be the same as other service declarations.”
- (4) In section 16 (contents of service declaration) –
 - (a) the existing text becomes subsection (1);
 - (b) in that subsection, in paragraph (e), after “Union” insert “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”;
 - (c) after that subsection insert –
 - “(2) In relation to the registration of local government electors in Wales, a service declaration made by a person claiming to have a service qualification under section 14(1A) does not require to be attested.”
- (5) In section 17 (effect of service declaration) –
 - (a) in subsection (1)(c), after “Union” insert “or (if the declaration is made for the purposes only of the registration of local government electors in Wales) a qualifying foreign citizen”;

(b) ar ôl is-adran (2) mewnosoder –

“(3) In relation to the registration of local government electors in Wales, subsection (2) is subject to section 15(3A).”

21 Cynnwys datganiadau o wasanaeth

(1) Mae Rheoliadau 2001 wedi eu diwygio fel a ganlyn.

(2) Yn rheoliad 15 (cynnwys datganiad o wasanaeth) –

(a) ar ôl paragraff (1) mewnosoder –

“(1A) In relation to the registration of local government electors in Wales, paragraph (1)(c) does not apply in a case where the declarant claims a service qualification under section 14(1A) of the 1983 Act (see instead regulation 15A).”;

(b) ar ôl paragraff (3) mewnosoder –

“(3A) In relation to the registration of local government electors in Wales, the reference to “Government department” in paragraph (3) includes any organisation in which a Crown servant works.”

(3) Ar ôl rheoliad 15 mewnosoder –

“15A Contents of service declaration: declarant with a service qualification under section 14(1A) of the 1983 Act

(1) In relation to the registration of local government electors in Wales, a service declaration by a person claiming a service qualification under section 14(1A) of the 1983 Act must include, in addition to the matters specified in regulation 15(1)(a) and (b), such of the particulars specified in paragraph (2), (3) or (4) as are relevant to the declarant.

(2) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a member of the forces (within the meaning of section 59(1) of the 1983 Act) or the spouse or civil partner of such a member, the declaration must state –

- (a) the service (whether naval, military or air forces) in which the member serves,
- (b) the rank or rating of the member,
- (c) the service number of the member, and
- (d) where the member serves in the military forces, the regiment or corps in which the member serves.

(3) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a Crown servant to whom regulation 14 applies or the spouse or civil partner of such a servant, the declaration must state –

- (a) the name of the organisation in which the servant works,
- (b) a description of the post of the servant, and

(b) after subsection (2) insert –

“(3) In relation to the registration of local government electors in Wales, subsection (2) is subject to section 15(3A).”

21 Contents of service declarations

(1) The 2001 Regulations are amended as follows.

(2) In regulation 15 (contents of service declaration) –

(a) after paragraph (1) insert –

“(1A) In relation to the registration of local government electors in Wales, paragraph (1)(c) does not apply in a case where the declarant claims a service qualification under section 14(1A) of the 1983 Act (see instead regulation 15A).”;

(b) after paragraph (3) insert –

“(3A) In relation to the registration of local government electors in Wales, the reference to “Government department” in paragraph (3) includes any organisation in which a Crown servant works.”

(3) After regulation 15 insert –

“15A Contents of service declaration: declarant with a service qualification under section 14(1A) of the 1983 Act

(1) In relation to the registration of local government electors in Wales, a service declaration by a person claiming a service qualification under section 14(1A) of the 1983 Act must include, in addition to the matters specified in regulation 15(1)(a) and (b), such of the particulars specified in paragraph (2), (3) or (4) as are relevant to the declarant.

(2) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a member of the forces (within the meaning of section 59(1) of the 1983 Act) or the spouse or civil partner of such a member, the declaration must state –

- (a) the service (whether naval, military or air forces) in which the member serves,
- (b) the rank or rating of the member,
- (c) the service number of the member, and
- (d) where the member serves in the military forces, the regiment or corps in which the member serves.

(3) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a Crown servant to whom regulation 14 applies or the spouse or civil partner of such a servant, the declaration must state –

- (a) the name of the organisation in which the servant works,
- (b) a description of the post of the servant, and

- (c) any staff number, payroll number or other similar identifying number of the servant.
- (4) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a British Council employee or the spouse or civil partner of such an employee, the declaration must state —
 - (a) a description of the post of the employee, and
 - (b) any staff number, payroll number or other similar identifying number of the employee.”

22 **Datganiadau o wasanaeth: darpariaeth bellach**

- (1) Mae Rheoliadau 2001 wedi eu diwygio fel a ganlyn.
- (2) Yn rheoliad 25 (atgoffa etholwyr a gofrestrwyd yn unol â datganiad), ar ôl paragraff (4) mewnosoder —
 - “(5) In relation to the registration of local government electors in Wales, paragraphs (6) and (7) apply in the case of a person registered in pursuance of a service declaration made by virtue of a service qualification under section 14(1A) of the 1983 Act.
 - (6) The registration officer must send to the person a reminder that the person’s declaration will cease to have effect, and that the person’s entitlement to remain registered will cease, when the person attains the age of 18.
 - (7) The reminder must be sent as soon as practicable within the period of 3 months ending on the day on which the person attains the age of 18.”
- (3) Yn rheoliad 26B (pŵer i ofyn am dystiolaeth ychwanegol lle nad oes gwybodaeth benodol ar gael neu lle bo’r swyddog cofrestru o’r farn bod hynny’n angenrheidiol) —
 - (a) ym mharagraff (7) —
 - (i) yn lle “(6)” rhodder “(6A)”;
 - (ii) ar ôl is-baragraff (c) mewnosoder —
 - “(ca) in relation to the registration of local government electors in Wales, a service declaration on the grounds that the applicant has a service qualification under section 14(1A) of the 1983 Act;”;
 - (b) ar ôl paragraff (9) mewnosoder —
 - “(9A) In the case of an application in pursuance of a service declaration within paragraph (7)(ca), the registration officer may require that the applicant give the officer one of the following documents or a copy of one of them certified by a relevant official —
 - (a) the applicant’s passport, or
 - (b) the applicant’s identity card issued in the European Economic Area.

- (c) any staff number, payroll number or other similar identifying number of the servant.
- (4) Where the declarant claims a service qualification on the grounds that a parent or guardian of the declarant is a British Council employee or the spouse or civil partner of such an employee, the declaration must state –
 - (a) a description of the post of the employee, and
 - (b) any staff number, payroll number or other similar identifying number of the employee.”

22 Service declarations: further provision

- (1) The 2001 Regulations are amended as follows.
- (2) In regulation 25 (reminders to electors registered pursuant to a declaration), after paragraph (4) insert –
 - “(5) In relation to the registration of local government electors in Wales, paragraphs (6) and (7) apply in the case of a person registered in pursuance of a service declaration made by virtue of a service qualification under section 14(1A) of the 1983 Act.
 - (6) The registration officer must send to the person a reminder that the person’s declaration will cease to have effect, and that the person’s entitlement to remain registered will cease, when the person attains the age of 18.
 - (7) The reminder must be sent as soon as practicable within the period of 3 months ending on the day on which the person attains the age of 18.”
- (3) In regulation 26B (power to request additional evidence where certain information is unavailable or where the registration officer considers it necessary) –
 - (a) in paragraph (7) –
 - (i) for “(6)” substitute “(6A)”;
 - (ii) after sub-paragraph (c) insert –
 - “(ca) in relation to the registration of local government electors in Wales, a service declaration on the grounds that the applicant has a service qualification under section 14(1A) of the 1983 Act;”;
 - (b) after paragraph (9) insert –
 - “(9A) In the case of an application in pursuance of a service declaration within paragraph (7)(ca), the registration officer may require that the applicant give the officer one of the following documents or a copy of one of them certified by a relevant official –
 - (a) the applicant’s passport, or
 - (b) the applicant’s identity card issued in the European Economic Area.

(9B) In paragraph (9A), “relevant official” means –

- (a) a Crown Servant (within the meaning of regulation 14),
- (b) a British Council employee, or
- (c) an officer of the forces (within the meaning of section 59(1) of the 1983 Act),

who is not the applicant’s parent, guardian, spouse or civil partner.”

23 Cofrestr etholwyr

Yn adran 9 o Ddeddf 1983 (cofrestrau etholwyr), ar ôl is-adran (5) mewnosoder –

“(5A) In relation to the registration of local government electors in Wales –

- (a) the entry in the combined registers of any person aged 16 or 17 who is registered only as a local government elector must give the date on which the person will attain the age of 18;
- (b) the entry in the combined registers of any person who is registered only as a local government elector by virtue of section 4(3A) of this Act must give an indication of that fact.”

24 Diogelu gwybodaeth am bersonau o dan 16 oed

- (1) Ni chaiff swyddog cofrestru gyhoeddi, cyflenwi neu ddatgelu fel arall wybodaeth person ifanc, heblaw yn unol â’r canlynol –

- (a) adran 25, neu
- (b) rheoliadau o dan adran 26.

- (2) Yn yr adran hon ac adrannau 25 a 26 –

ystyr “cofnod neu restr o bleidleiswyr absennol” (“*absent voters record or list*”) yw unrhyw un neu ragor o’r canlynol –

- (a) cofnod a gedwir o dan erthygl 8(3), 9(6) neu 12(6) o Orchymyn 2007;
- (b) rhestr a gedwir o dan erthygl 10 neu 12(8) o Orchymyn 2007;

mae “cofrestr o etholwyr llywodraeth leol” (“*register of local government electors*”) yn cynnwys unrhyw hysbysiad o addasiad yn y gofrestr o dan adran 13A(2), 13AB(2) neu 13B(3), (3B) neu (3D) o Ddeddf 1983;

ystyr “gwybodaeth person ifanc” (“*a young person’s information*”) yw unrhyw –

- (a) cofnod yn y gofrestr o etholwyr llywodraeth leol, neu
- (b) eitem mewn cofnod neu restr o bleidleiswyr absennol,

sy’n ymwneud â pherson sydd, adeg cyhoeddi neu gyflenwi’r wybodaeth neu ei datgelu fel arall, o dan 16 oed, ac mae “person ifanc” i’w ddehongli yn unol â hynny;

(9B) In paragraph (9A), “relevant official” means –

- (a) a Crown Servant (within the meaning of regulation 14),
- (b) a British Council employee, or
- (c) an officer of the forces (within the meaning of section 59(1) of the 1983 Act),

who is not the applicant’s parent, guardian, spouse or civil partner.”

23 Register of electors

In section 9 of the 1983 Act (registers of electors), after subsection (5) insert –

“(5A) In relation to the registration of local government electors in Wales –

- (a) the entry in the combined registers of any person aged 16 or 17 who is registered only as a local government elector must give the date on which the person will attain the age of 18;
- (b) the entry in the combined registers of any person who is registered only as a local government elector by virtue of section 4(3A) of this Act must give an indication of that fact.”

24 Protection of information about persons aged under 16

- (1) A registration officer must not publish, supply or otherwise disclose a young person’s information, except in accordance with –

- (a) section 25, or
- (b) regulations under section 26.

- (2) In this section and sections 25 and 26 –

“a young person’s information” (*“gwybodaeth person ifanc”*) means any entry in –

- (a) the register of local government electors, or
- (b) an absent voters record or list,

relating to a person who, at the time of the publication, supply or other disclosure, is under the age of 16, and “young person” is to be interpreted accordingly;

“absent voters record or list” (*“cofnod neu restr o bleidleiswyr absennol”*) means any of the following –

- (a) a record kept under article 8(3), 9(6) or 12(6) of the 2007 Order;
- (b) a list kept under article 10 or 12(8) of the 2007 Order;

“register of local government electors” (*“cofrestr o etholwyr llywodraeth leol”*) includes any notice of an alteration in the register under section 13A(2), 13AB(2) or 13B(3), (3B) or (3D) of the 1983 Act;

mae “swyddog cofrestru” (“*registration officer*”) yn cynnwys –

- (a) dirprwy i swyddog cofrestru;
- (b) person a benodir i gynorthwyo swyddog cofrestru i gyflawni swyddogaethau'r swyddog cofrestru;
- (c) person, yng nghwrs cyflogaeth y person, sy'n cynorthwyo swyddog cofrestru i gyflawni'r swyddogaethau hynny.

25 Eithriadau i'r gwaharddiad ar ddatgelu

- (1) Mae'r adran hon yn gymwys at ddiben adran 24(1).
- (2) Caniateir datgelu gwybodaeth person ifanc i unrhyw berson i'r graddau y bo hynny'n angenrheidiol at ddiben cyflawni swyddogaethau'r person hwnnw mewn cysylltiad ag –
 - (a) cofrestru etholwyr, neu
 - (b) cynnal etholiad.
- (3) Caniateir datgelu gwybodaeth person ifanc yn unol â rheoliad 32ZA(5) a (5A) o Reoliadau 2001 (rhagboblogi'r ffurflen ganfasio).
- (4) Caniateir datgelu gwybodaeth person ifanc (oni bai am unrhyw wybodaeth y gellid canfod dyddiad geni'r person oddi wrthi) mewn fersiwn neu gopi o'r gofrestr o etholwyr llywodraeth leol neu gofnod neu restr o bleidleiswyr absennol a gyflenwir yn unol â deddfiad cyflenwi perthnasol, ond dim ond i'r graddau y bo gwneud hynny'n angenrheidiol at ddibenion etholiad lle y bydd gan y person ifanc hawl i bleidleisio neu mewn cysylltiad ag etholiad o'r fath.
- (5) Yn is-adran (4), ystyr “deddfiad cyflenwi perthnasol” yw –
 - (a) rheoliad 100 o Reoliadau 2001 (cyflenwi i'r Comisiwn Etholiadol);
 - (b) rheoliad 104 o Reoliadau 2001 (cyflenwi i ddeiliaid swyddi etholiadol perthnasol ac ymgeiswyr), i'r graddau y mae'n gymwys i Aelod o'r Senedd;
 - (c) rheoliad 108 o Reoliadau 2001 (cyflenwi i ymgeiswyr), i'r graddau y mae'n gymwys i ymgeiswyr yn etholiadau'r Senedd;
 - (d) rheoliad 102 o Reoliadau 2001 (darpariaeth gyffredinol), i'r graddau y mae'n ymwneud â rheoliadau 104 a 108;
 - (e) unrhyw ddeddfiad sy'n gwneud darpariaeth sy'n cyfateb i'r ddarpariaeth yn rheoliad 61 o Reoliadau 2001 (cofnodion a rhestrau pleidleiswyr absennol) mewn perthynas ag etholiadau'r Senedd;
 - (f) unrhyw ddeddfiad sy'n gwneud darpariaeth sy'n cyfateb i'r ddarpariaeth yn rheoliad 98(4) o Reoliadau 2001 mewn perthynas ag etholiadau'r Senedd.
- (6) Caniateir datgelu gwybodaeth person ifanc i unrhyw berson i'r graddau y bo hynny'n angenrheidiol at ddibenion ymchwiliad troseddol neu achos troseddol sy'n ymwneud â throredd (neu drosedd honedig) o dan unrhyw ddeddfiad sy'n ymwneud ag –
 - (a) cofrestru etholwyr, neu
 - (b) cynnal etholiadau.
- (7) Caniateir datgelu gwybodaeth person ifanc i'r person ifanc y mae'r wybodaeth yn ymwneud ag ef.

“registration officer” (“*swyddog cofrestru*”) includes –

- (a) a deputy of a registration officer;
- (b) a person appointed to assist a registration officer in the carrying out of the registration officer’s functions;
- (c) a person, in the course of the person’s employment, assisting a registration officer in the carrying out of those functions.

25 Exceptions from prohibition on disclosure

- (1) This section applies for the purpose of section 24(1).
- (2) A young person’s information may be disclosed to any person so far as necessary for the purpose of the carrying out by that person of functions in connection with –
 - (a) the registration of electors, or
 - (b) the conduct of an election.
- (3) A young person’s information may be disclosed in accordance with regulation 32ZA(5) and (5A) of the 2001 Regulations (pre-population of the canvass form).
- (4) A young person’s information (other than any information by which the person’s date of birth may be ascertained) may be disclosed in a version or copy of the register of local government electors or an absent voters record or list supplied in accordance with a relevant supply enactment, but only so far as it is necessary to do so for the purposes of or in connection with an election at which the young person will be entitled to vote.
- (5) In subsection (4), “relevant supply enactment” means –
 - (a) regulation 100 of the 2001 Regulations (supply to the Electoral Commission);
 - (b) regulation 104 of the 2001 Regulations (supply to holders of relevant elective offices and candidates), so far as applying to a Member of the Senedd;
 - (c) regulation 108 of the 2001 Regulations (supply to candidates), so far as applying to candidates at Senedd elections;
 - (d) regulation 102 of the 2001 Regulations (general provision), so far as relating to regulations 104 and 108;
 - (e) any enactment making provision equivalent to that in regulation 61 of the 2001 Regulations (absent voters records and lists) in relation to Senedd elections;
 - (f) any enactment making provision equivalent to that in regulation 98(4) of the 2001 Regulations in relation to Senedd elections.
- (6) A young person’s information may be disclosed to any person so far as necessary for the purposes of a criminal investigation or criminal proceedings relating to an offence (or alleged offence) under any enactment relating to –
 - (a) the registration of electors, or
 - (b) the conduct of elections.
- (7) A young person’s information may be disclosed to the young person to whom it relates.

- (8) Rhaid i swyddog cofrestru gyflenwi gwybodaeth person ifanc i'r person ifanc y mae'r wybodaeth yn ymwneud ag ef os bydd y person ifanc yn gofyn am yr wybodaeth at ddiben gwirio bod y person ifanc yn rhoddwr a ganiateir o fewn ystyr ("permissible donor") yn adran 54(2)(a) o Ddeddf Pleidiau Gwleidyddol, Etholiadau a Refferenda 2000 (p. 41).
- (9) Caniateir datgelu gwybodaeth person ifanc i berson a benodwyd yn ddirprwy i bleidleisio ar ran y person ifanc y mae'r wybodaeth yn ymwneud ag ef.
- (10) Ni chaiff person y datgelwyd gwybodaeth person ifanc iddo o dan is-adran (2) neu (6) ddatgelu'r wybodaeth i berson arall, ac eithrio fel y crybwyllir yn yr is-adran honno.
- (11) Mae person sy'n torri is-adran (10) yn cyflawni trosedd ac mae'n agored i ddirwy ar euogfarn ddiannod.

26 Darpariaeth bellach ar gyfer eithriadau

- (1) Caiff Gweinidogion Cymru drwy reoliadau wneud darpariaeth ar gyfer neu ynghylch datgelu gwybodaeth person ifanc mewn cysylltiad ag etholiadau i'r Senedd.
- (2) Caiff rheoliadau o dan is-adran (1) (ymhlith pethau eraill) gynnwys darpariaeth—
 - (a) yn awdurdodi neu'n ei gwneud yn ofynnol i swyddogion cofrestru gyflenwi neu ddatgelu fel arall unrhyw wybodaeth person ifanc i bersonau a bennir yn y rheoliadau;
 - (b) yn pennu, mewn perthynas ag unrhyw ddisgrifiad o bersonau a bennir yn y rheoliadau yn unol â pharagraff (a), y dibenion y caniateir defnyddio unrhyw wybodaeth person ifanc a gyflenwyd neu a ddatgelwyd fel arall;
 - (c) yn gosod gwaharddiadau neu gyfyngiadau sy'n ymwneud â'r graddau (os o gwbl) y caiff personau y cyflenwyd neu y datgelwyd unrhyw wybodaeth person ifanc iddynt (boed hynny yn unol â'r rheoliadau neu fel arall)—
 - (i) cyflenwi neu ddatgelu fel arall yr wybodaeth i bersonau eraill;
 - (ii) gwneud defnydd o'r wybodaeth ac eithrio at unrhyw ddibenion a bennir yn y rheoliadau neu'r dibenion y cyflenwyd neu y datgelwyd yr wybodaeth fel arall yn unol â'r rheoliadau;
 - (d) yn gosod gwaharddiadau neu gyfyngiadau sy'n cyfateb i'r rhai y caniateir eu gosod yn rhinwedd paragraff (c) mewn perthynas ag—
 - (i) personau y mae unrhyw wybodaeth person ifanc wedi ei chyflenwi neu ei datgelu fel arall iddynt yn unol â rheoliadau a wneir yn unol â pharagraff (c) neu'r paragraff hwn, neu
 - (ii) personau sydd fel arall â mynediad at unrhyw wybodaeth person ifanc;
 - (e) yn gosod, mewn perthynas â phersonau sy'n ymwneud â pharatoi'r gofrestr lawn o etholwyr llywodraeth leol, waharddiadau sy'n ymwneud â chyflenwi copïau o'r gofrestr lawn a datgelu unrhyw wybodaeth person ifanc a gynhwysir ynddi.
- (3) Caiff rheoliadau o dan is-adran (1)—
 - (a) diwygio, diddymu neu addasu darpariaeth yn adran 25;

- (8) A registration officer must supply a young person's information to the young person to whom it relates if the young person requests the information for the purpose of verifying that the young person is a permissible donor within the meaning of section 54(2)(a) of the Political Parties, Elections and Referendums Act 2000 (c. 41).
- (9) A young person's information may be disclosed to a person appointed as proxy to vote for the young person to whom the information relates.
- (10) A person to whom a young person's information is disclosed under subsection (2) or (6) must not disclose the information to another person, except as mentioned in that subsection.
- (11) A person who contravenes subsection (10) commits an offence and is liable on summary conviction to a fine.

26 Further provision for exceptions

- (1) The Welsh Ministers may by regulations make provision for or about the disclosure of a young person's information in connection with elections to the Senedd.
- (2) Regulations under subsection (1) may (among other things) include provision –
 - (a) authorising or requiring registration officers to supply or otherwise disclose any young person's information to persons specified in the regulations;
 - (b) specifying, in relation to any description of persons specified in the regulations in pursuance of paragraph (a), the purposes for which any young person's information supplied or otherwise disclosed may be used;
 - (c) imposing prohibitions or restrictions relating to the extent (if any) to which persons to whom any young person's information is supplied or otherwise disclosed (whether in accordance with the regulations or otherwise) may –
 - (i) supply or otherwise disclose the information to other persons;
 - (ii) make use of the information otherwise than for any purposes specified in the regulations or for which the information has been supplied or otherwise disclosed in accordance with the regulations;
 - (d) imposing prohibitions or restrictions corresponding to those which may be imposed by virtue of paragraph (c) in relation to –
 - (i) persons to whom any young person's information has been supplied or otherwise disclosed in accordance with regulations made in pursuance of paragraph (c) or this paragraph, or
 - (ii) persons who otherwise have access to any young person's information;
 - (e) imposing, in relation to persons involved in the preparation of the full register of local government electors, prohibitions with respect to supplying copies of the full register and disclosing any young person's information contained in it.
- (3) Regulations under subsection (1) may –
 - (a) amend, repeal or modify provision in section 25;

- (b) gwneud darpariaeth drwy gyfeirio at ddeddfiadau eraill sy'n ymwneud â chyflenwi neu ddatgelu'r gofrestr o etholwyr llywodraeth leol, neu gopïau ohoni neu'r cofnodion ynddi;
- (c) darparu ar gyfer creu troseddau sydd i'w cosbi drwy ddirwy ar euogfarn ddiannod.
- (4) Cyn gwneud rheoliadau o dan is-adran (1), rhaid i Weinidogion Cymru ymgynghori â'r cyfryw bersonau sy'n briodol ym marn Gweinidogion Cymru.

27 Diwygiadau i Orchymyn Cynulliad Cenedlaethol Cymru (Cynrychiolaeth y Bobl) 2007

- (1) Mae Gorchymyn 2007 wedi ei ddiwygio fel a ganlyn.
- (2) Yn erthygl 2(1) –
 - (a) ar ôl y diffiniad o “qualifying Commonwealth citizen” mewnosoder –
 - ““qualifying foreign citizen” means a person who –
 - (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a relevant citizen of the Union, and
 - (b) either –
 - (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) any description of such leave;”;
 - (b) yn y diffiniad o “qualifying Commonwealth citizen” yn lle “indefinite leave to remain within the meaning of that Act” hyd at y diwedd rhodder “any description of such leave”;
 - (c) ar ddiwedd y diffiniad o “valid postal voting statement”, hepgorer “and”;
 - (d) ar ôl y diffiniad o “voter”, mewnosoder –
 - ““voting age” means 16 years of age or over.”
- (3) Yn erthygl 11 (dirprwyon yn etholiadau'r Cynulliad) –
 - (a) ym mharagraff (3)(b), ar ôl “Union” mewnosoder “nor a qualifying foreign citizen”;
 - (b) ym mharagraff (4), yn lle “eighteen” rhodder “16”.
- (4) Yn erthygl 26(3)(b) (effaith cofrestrau), ar ôl is-baragraff (i) mewnosoder –
 - “(ia) a qualifying foreign citizen;”.
- (5) Mae'r diwygiadau a ganlyn yn cael effaith at ddibenion etholiad i fod yn Aelod o'r Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny –
 - (a) y diwygiad a wneir gan is-adran (2)(d) i'r graddau y mae'n diffinio “voting age” yn erthygl 26(3)(a) o Orchymyn 2007;
 - (b) y diwygiadau a wneir gan is-adrannau (3) a (4).

- (b) make provision by reference to other enactments relating to the supply or disclosure of the register of local government electors, or copies of it or entries in it;
 - (c) provide for the creation of criminal offences punishable on summary conviction by a fine.
- (4) Before making regulations under subsection (1), the Welsh Ministers must consult such persons as the Welsh Ministers consider appropriate.

27 Amendments to the National Assembly for Wales (Representation of the People) Order 2007

- (1) The 2007 Order is amended as follows.
- (2) In article 2(1) –
 - (a) after the definition of “qualifying Commonwealth citizen” insert –
 - ““qualifying foreign citizen” means a person who –
 - (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a relevant citizen of the Union, and
 - (b) either –
 - (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) any description of such leave;”
 - (b) in the definition of “qualifying Commonwealth citizen” for “indefinite leave to remain within the meaning of that Act” to the end substitute “any description of such leave”;
 - (c) at the end of the definition of “valid postal voting statement”, omit “and”;
 - (d) after the definition of “voter”, insert –
 - ““voting age” means 16 years of age or over.”
- (3) In article 11 (proxies at Assembly elections) –
 - (a) in paragraph (3)(b), after “Union” insert “nor a qualifying foreign citizen”;
 - (b) in paragraph (4), for “eighteen” substitute “16”.
- (4) In article 26(3)(b) (effect of registers), after sub-paragraph (i) insert –
 - “(ia) a qualifying foreign citizen;”.
- (5) The following amendments have effect for the purposes of an election for membership of the Senedd at which the poll is held on or after 5 April 2021 –
 - (a) the amendment made by subsection (2)(d) so far as it defines “voting age” in article 26(3)(a) of the 2007 Order;
 - (b) the amendments made by subsections (3) and (4).

*Goruchwyllo'r gwaith o weinyddu etholiadau***28 Trefniadau ariannol a goruchwyllo'r Comisiwn Etholiadol**

- (1) Mae Atodlen 1 i Ddeddf Pleidiau Gwleidyddol, Etholiadau a Refferenda 2000 (p. 41) wedi ei diwygio fel a ganlyn.
- (2) Ar ôl paragraff 16 mewnosoder –

“Financing of Commission: devolved Welsh elections and referendums

- 16A (1) The expenditure of the Commission that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums is (so far as it cannot be met out of income received by the Commission) to be payable out of the Welsh Consolidated Fund.
- (2) For each financial year, the Commission must prepare an estimate of the Commission’s income and expenditure that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums.
 - (3) At least six months before the start of the financial year to which an estimate relates, the Commission must submit the estimate to the Llywydd’s Committee.
 - (4) During the financial year to which an estimate relates, the Commission may prepare a revised estimate and submit it to the Llywydd’s Committee; and references in the rest of this paragraph to an estimate include a revised estimate.
 - (5) The committees of Senedd Cymru must include one to be known as the Llywydd’s Committee or Pwyllgor y Llywydd.
 - (6) The committee must be chaired by the Presiding Officer or the Deputy Presiding Officer.
 - (7) The Llywydd’s Committee must –
 - (a) examine each estimate submitted to it,
 - (b) decide whether it is satisfied that the estimated level of income and expenditure is consistent with the economical, efficient and effective discharge by the Commission of their functions in relation to devolved Welsh elections and devolved Welsh referendums, and
 - (c) if it is not so satisfied, make such modifications to the estimate as it considers appropriate for the purpose of achieving such consistency.
 - (8) Before deciding whether it is so satisfied or making any such modifications, the Llywydd’s Committee must –

*Oversight of administration of elections***28 Financial and oversight arrangements of the Electoral Commission**

- (1) Schedule 1 to the Political Parties, Elections and Referendums Act 2000 (c. 41) is amended as follows.
- (2) After paragraph 16 insert –

“Financing of Commission: devolved Welsh elections and referendums

- 16A (1) The expenditure of the Commission that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums is (so far as it cannot be met out of income received by the Commission) to be payable out of the Welsh Consolidated Fund.
- (2) For each financial year, the Commission must prepare an estimate of the Commission’s income and expenditure that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums.
 - (3) At least six months before the start of the financial year to which an estimate relates, the Commission must submit the estimate to the Llywydd’s Committee.
 - (4) During the financial year to which an estimate relates, the Commission may prepare a revised estimate and submit it to the Llywydd’s Committee; and references in the rest of this paragraph to an estimate include a revised estimate.
 - (5) The committees of Senedd Cymru must include one to be known as the Llywydd’s Committee or Pwyllgor y Llywydd.
 - (6) The committee must be chaired by the Presiding Officer or the Deputy Presiding Officer.
 - (7) The Llywydd’s Committee must –
 - (a) examine each estimate submitted to it,
 - (b) decide whether it is satisfied that the estimated level of income and expenditure is consistent with the economical, efficient and effective discharge by the Commission of their functions in relation to devolved Welsh elections and devolved Welsh referendums, and
 - (c) if it is not so satisfied, make such modifications to the estimate as it considers appropriate for the purpose of achieving such consistency.
 - (8) Before deciding whether it is so satisfied or making any such modifications, the Llywydd’s Committee must –

- (a) have regard to the most recent report made to it by the Comptroller and Auditor General under paragraph 16C(2), to any later report made under paragraph 16C(4), and to any recommendations contained in the reports;
 - (b) consult the Welsh Ministers and have regard to any advice the Welsh Ministers may give.
- (9) The Llywydd's Committee must, after concluding its examination and making its modifications (if any) to the estimate, lay the estimate before Senedd Cymru.
- (10) If the Llywydd's Committee, in the discharge of its functions under this paragraph—
 - (a) does not follow any recommendation contained in a report of the Comptroller and Auditor General,
 - (b) does not follow any advice given to it by the Welsh Ministers, or
 - (c) makes any modification to the estimate,
 it must include in the next report which it makes to Senedd Cymru under paragraph 20B a statement of its reasons for so doing.

Five-year plan: devolved Welsh elections and referendums

- 16B (1) This paragraph applies where paragraph 16A(3) requires the Commission to submit an estimate to the Llywydd's Committee and—
- (a) the estimate is the first estimate to be submitted under paragraph 16A(3),
 - (b) the estimate relates to the first financial year to begin after the day on which Senedd Cymru meets following an ordinary general election of Members of the Senedd, or
 - (c) the estimate relates to any other financial year and the Llywydd's Committee requires the Commission to submit a plan under this paragraph.
 - (2) When the Commission submit the estimate, the Commission must at the same time submit to the Llywydd's Committee a plan setting out—
 - (a) the Commission's aims and objectives for the exercise of the Commission's functions in relation to devolved Welsh elections and devolved Welsh referendums during the period of five years beginning with the financial year to which the estimate relates, and
 - (b) the Commission's estimated requirements for resources for the exercise of those functions during that five-year period.
 - (3) The Llywydd's Committee must—

- (a) have regard to the most recent report made to it by the Comptroller and Auditor General under paragraph 16C(2), to any later report made under paragraph 16C(4), and to any recommendations contained in the reports;
 - (b) consult the Welsh Ministers and have regard to any advice the Welsh Ministers may give.
- (9) The Llywydd's Committee must, after concluding its examination and making its modifications (if any) to the estimate, lay the estimate before Senedd Cymru.
- (10) If the Llywydd's Committee, in the discharge of its functions under this paragraph—
 - (a) does not follow any recommendation contained in a report of the Comptroller and Auditor General,
 - (b) does not follow any advice given to it by the Welsh Ministers, or
 - (c) makes any modification to the estimate,it must include in the next report which it makes to Senedd Cymru under paragraph 20B a statement of its reasons for so doing.

Five-year plan: devolved Welsh elections and referendums

- 16B (1) This paragraph applies where paragraph 16A(3) requires the Commission to submit an estimate to the Llywydd's Committee and—
- (a) the estimate is the first estimate to be submitted under paragraph 16A(3),
 - (b) the estimate relates to the first financial year to begin after the day on which Senedd Cymru meets following an ordinary general election of Members of the Senedd, or
 - (c) the estimate relates to any other financial year and the Llywydd's Committee requires the Commission to submit a plan under this paragraph.
 - (2) When the Commission submit the estimate, the Commission must at the same time submit to the Llywydd's Committee a plan setting out—
 - (a) the Commission's aims and objectives for the exercise of the Commission's functions in relation to devolved Welsh elections and devolved Welsh referendums during the period of five years beginning with the financial year to which the estimate relates, and
 - (b) the Commission's estimated requirements for resources for the exercise of those functions during that five-year period.
 - (3) The Llywydd's Committee must—

- (a) examine each plan submitted to it,
 - (b) decide whether it is satisfied that the plan is consistent with the economical, efficient and effective discharge by the Commission of their functions in relation to devolved Welsh elections and devolved Welsh referendums, and
 - (c) if it is not so satisfied, make such modifications to the plan as it considers appropriate for the purpose of achieving such consistency.
- (4) Before deciding whether it is so satisfied or making any such modifications, the Llywydd's Committee must—
- (a) have regard to the most recent report made to it by the Comptroller and Auditor General under paragraph 16C(2) and to any recommendations contained in the report;
 - (b) consult the Welsh Ministers and have regard to any advice the Welsh Ministers may give.
- (5) The Llywydd's Committee must, after concluding its examination and making its modifications (if any) to the plan, lay the plan before Senedd Cymru.
- (6) If the Llywydd's Committee, in the discharge of its functions under this paragraph—
- (a) does not follow any recommendation contained in the report of the Comptroller and Auditor General,
 - (b) does not follow any advice given to it by the Welsh Ministers, or
 - (c) makes any modification to the plan,
- it must include in the next report which it makes to Senedd Cymru under paragraph 20B a statement of its reasons for so doing.

Examination of Commission: devolved Welsh elections and referendums

- 16C (1) Sub-paragraph (2) applies where the Commission submit to the Llywydd's Committee both an estimate under paragraph 16A(3) and a plan under paragraph 16B(2).
- (2) For the purpose of assisting the Llywydd's Committee to discharge its functions under paragraphs 16A and 16B, the Comptroller and Auditor General must, before the Llywydd's Committee considers the estimate and plan—
- (a) carry out an examination into the economy, efficiency or effectiveness (or, if the Comptroller and Auditor General so determines, any combination of them) with which the Commission have used their resources in discharging their functions in relation to devolved Welsh elections and devolved Welsh referendums (or, if the Comptroller and Auditor General so determines, any of those functions),

- (a) examine each plan submitted to it,
 - (b) decide whether it is satisfied that the plan is consistent with the economical, efficient and effective discharge by the Commission of their functions in relation to devolved Welsh elections and devolved Welsh referendums, and
 - (c) if it is not so satisfied, make such modifications to the plan as it considers appropriate for the purpose of achieving such consistency.
- (4) Before deciding whether it is so satisfied or making any such modifications, the Llywydd's Committee must—
 - (a) have regard to the most recent report made to it by the Comptroller and Auditor General under paragraph 16C(2) and to any recommendations contained in the report;
 - (b) consult the Welsh Ministers and have regard to any advice the Welsh Ministers may give.
- (5) The Llywydd's Committee must, after concluding its examination and making its modifications (if any) to the plan, lay the plan before Senedd Cymru.
- (6) If the Llywydd's Committee, in the discharge of its functions under this paragraph—
 - (a) does not follow any recommendation contained in the report of the Comptroller and Auditor General,
 - (b) does not follow any advice given to it by the Welsh Ministers, or
 - (c) makes any modification to the plan,it must include in the next report which it makes to Senedd Cymru under paragraph 20B a statement of its reasons for so doing.

Examination of Commission: devolved Welsh elections and referendums

- 16C (1) Sub-paragraph (2) applies where the Commission submit to the Llywydd's Committee both an estimate under paragraph 16A(3) and a plan under paragraph 16B(2).
- (2) For the purpose of assisting the Llywydd's Committee to discharge its functions under paragraphs 16A and 16B, the Comptroller and Auditor General must, before the Llywydd's Committee considers the estimate and plan—
- (a) carry out an examination into the economy, efficiency or effectiveness (or, if the Comptroller and Auditor General so determines, any combination of them) with which the Commission have used their resources in discharging their functions in relation to devolved Welsh elections and devolved Welsh referendums (or, if the Comptroller and Auditor General so determines, any of those functions),

- (b) report to the Llywydd's Committee the results of the examination, and
 - (c) include in the report such recommendations as the Comptroller and Auditor General considers appropriate in the light of the examination.
 - (3) Sub-paragraph (4) applies where the Commission –
 - (a) submit an estimate to the Llywydd's Committee under paragraph 16A(3) but are not required to submit a plan under paragraph 16B(2), or
 - (b) submit a revised estimate to the Llywydd's Committee under paragraph 16A(4).
 - (4) For the purpose of assisting the Llywydd's Committee to discharge its functions under paragraph 16A, the Comptroller and Auditor General may, before the Llywydd's Committee considers the estimate –
 - (a) carry out a further examination into the matters mentioned in sub-paragraph (2)(a),
 - (b) report to the Llywydd's Committee the results of the examination, and
 - (c) include in the report such recommendations as the Comptroller and Auditor General considers appropriate in the light of the examination.
 - (5) Section 8 of the National Audit Act 1983 (right to obtain documents and information) applies in relation to any examination under this paragraph as it applies in relation to an examination under section 6 of that Act.
 - (6) See also section 19 of the Public Audit (Wales) Act 2013 (which enables the Wales Audit Office to make arrangements for any function of a public authority or office holder to be exercised by the Auditor General for Wales)."
- (3) Ym mharagraff 18 (archwilio) –
- (a) yn is-baragraff (1)(b), ar y diwedd mewnosoder "and the Llywydd's Committee";
 - (b) yn is-baragraff (2)(b), ar ôl "Parliament" mewnosoder "and Senedd Cymru";
 - (c) ar ôl is-baragraff (2) mewnosoder –
- "(3) The Llywydd's Committee may submit to the Auditor General for Wales any accounts that have been certified and laid before Senedd Cymru under sub-paragraph (2).
 - (4) The Auditor General for Wales must –
 - (a) carry out a further examination of any accounts submitted under sub-paragraph (3), so far as they relate to the exercise of the Commission's functions in relation to devolved Welsh elections and devolved Welsh referendums, and

- (b) report to the Llywydd's Committee the results of the examination, and
 - (c) include in the report such recommendations as the Comptroller and Auditor General considers appropriate in the light of the examination.
 - (3) Sub-paragraph (4) applies where the Commission –
 - (a) submit an estimate to the Llywydd's Committee under paragraph 16A(3) but are not required to submit a plan under paragraph 16B(2), or
 - (b) submit a revised estimate to the Llywydd's Committee under paragraph 16A(4).
 - (4) For the purpose of assisting the Llywydd's Committee to discharge its functions under paragraph 16A, the Comptroller and Auditor General may, before the Llywydd's Committee considers the estimate –
 - (a) carry out a further examination into the matters mentioned in sub-paragraph (2)(a),
 - (b) report to the Llywydd's Committee the results of the examination, and
 - (c) include in the report such recommendations as the Comptroller and Auditor General considers appropriate in the light of the examination.
 - (5) Section 8 of the National Audit Act 1983 (right to obtain documents and information) applies in relation to any examination under this paragraph as it applies in relation to an examination under section 6 of that Act.
 - (6) See also section 19 of the Public Audit (Wales) Act 2013 (which enables the Wales Audit Office to make arrangements for any function of a public authority or office holder to be exercised by the Auditor General for Wales)."
- (3) In paragraph 18 (audit) –
- (a) in sub-paragraph (1)(b), at the end insert "and the Llywydd's Committee";
 - (b) in sub-paragraph (2)(b), after "Parliament" insert "and Senedd Cymru";
 - (c) after sub-paragraph (2) insert –
 - "(3) The Llywydd's Committee may submit to the Auditor General for Wales any accounts that have been certified and laid before Senedd Cymru under sub-paragraph (2).
 - (4) The Auditor General for Wales must –
 - (a) carry out a further examination of any accounts submitted under sub-paragraph (3), so far as they relate to the exercise of the Commission's functions in relation to devolved Welsh elections and devolved Welsh referendums, and

- (b) prepare and lay before Senedd Cymru a report on the accounts so far as they relate to the exercise of those functions."
- (4) Ym mharagraff 19(4) (cyfrifoldebau'r swyddog cyfrifyddu), ar ôl "the Speaker's Committee" mewnosoder ", the Llywydd's Committee".
- (5) Ar ôl paragraff 20 mewnosoder –

"Reports by Commission: devolved Welsh elections and referendums

- 20A (1) The Commission must, as soon as practicable after the end of each financial year –
- (a) prepare a report about the performance of the Commission's functions in relation to devolved Welsh elections and devolved Welsh referendums during that financial year, and
 - (b) lay the report before Senedd Cymru.
- (2) On laying the report, the Commission must publish it in such manner as the Commission may determine.

Reports by the Llywydd's Committee

- 20B (1) The Llywydd's Committee must, at least once in each year –
- (a) prepare a report on the exercise by the Llywydd's Committee of its functions under this Schedule, and
 - (b) lay the report before Senedd Cymru.
- (2) For the purposes of the law of defamation, the publication of any matter by the Llywydd's Committee in such a report is absolutely privileged."
- (6) Ym mharagraff 25 –
- (a) daw'r ddarpariaeth bresennol yn is-baragraff (1);
 - (b) ar ôl yr is-baragraff hwnnw mewnosoder –

"(2) In this Schedule –

"devolved Welsh election" means –

- (a) a general election of members of Senedd Cymru;
- (b) an election held under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
- (c) a local government election in Wales;

"devolved Welsh referendum" means a referendum held under Part 2 of the Local Government Act 2000 or Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to local authority executive arrangements);

"the Llywydd's Committee" means the Committee established in accordance with paragraph 16A(5)."

- (b) prepare and lay before Senedd Cymru a report on the accounts so far as they relate to the exercise of those functions.”
- (4) In paragraph 19(4) (responsibilities of accounting officer), after “the Speaker’s Committee” insert “, the Llywydd’s Committee”.
- (5) After paragraph 20 insert –

“Reports by Commission: devolved Welsh elections and referendums

- 20A (1) The Commission must, as soon as practicable after the end of each financial year –
- (a) prepare a report about the performance of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums during that financial year, and
 - (b) lay the report before Senedd Cymru.
- (2) On laying the report, the Commission must publish it in such manner as the Commission may determine.

Reports by the Llywydd’s Committee

- 20B (1) The Llywydd’s Committee must, at least once in each year –
- (a) prepare a report on the exercise by the Llywydd’s Committee of its functions under this Schedule, and
 - (b) lay the report before Senedd Cymru.
- (2) For the purposes of the law of defamation, the publication of any matter by the Llywydd’s Committee in such a report is absolutely privileged.”
- (6) In paragraph 25 –
- (a) the existing provision becomes sub-paragraph (1);
 - (b) after that sub-paragraph insert –
- “(2) In this Schedule –
- “devolved Welsh election” means –
- (a) a general election of members of Senedd Cymru;
 - (b) an election held under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) a local government election in Wales;
- “devolved Welsh referendum” means a referendum held under Part 2 of the Local Government Act 2000 or Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to local authority executive arrangements);
- “the Llywydd’s Committee” means the Committee established in accordance with paragraph 16A(5).”

- (7) Mae Atodlen 2 yn cynnwys diwygiadau pellach sy'n ymwneud â'r Comisiwn Etholiadol.

RHAN 4

ANGHYMHWYSO

29 Anghymhwyso rhag bod yn Aelod o'r Senedd

- (1) Mae adran 16 o Ddeddf 2006 (anghymhwyso rhag bod yn Aelod Cynulliad) wedi ei diwygio fel a ganlyn.
- (2) O flaen is-adran (1) mewnosoder –
 - “(A1) A person is disqualified from being a Member of the Senedd, and from being a candidate to be a Member of the Senedd, if that person –
 - (a) falls within any of the categories of person specified in Part 1 of Schedule 1A, or
 - (b) holds any of the offices specified in the Table in Part 2 of Schedule 1A.”
- (3) Yn is-adran (1) –
 - (a) yn lle'r geiriau o flaen paragraff (za) rhodder –
 - “(1) A person is disqualified from being a Member of the Senedd (but not from being a candidate to be a Member of the Senedd) if that person –”;
 - (b) ar ôl paragraff (za), mewnosoder –
 - “(zb) is a member of the House of Lords (but see section 17C),
 - (zc) is a member of the council of a county or county borough in Wales (but see sections 17D, 17E and 17F),
 - (zd) is a member of the Scottish Parliament,
 - (ze) is a member of the Northern Ireland Assembly,
 - (zf) is a member of the European Parliament, or”;
 - (c) hepgorer paragraff (a);
 - (d) hepgorer paragraffau (c) i (e).
- (4) Ar ôl is-adran (1) mewnosoder –
 - “(1A) A person returned at an election as a Member of the Senedd is not disqualified under subsection (1)(zd), (ze), (zf) or (b) at any time before the person purports to take the oath of allegiance (or make the corresponding affirmation) in compliance with section 23(1) or 55(2).”
- (5) Hepgorer is-adrannau (2) i (4).
- (6) Yn is-adran (5), yn lle “in that paragraph and this subsection” rhodder “for the purposes of this section”.
- (7) O flaen Atodlen 2 i Ddeddf 2006, mewnosoder yr Atodlen 1A a bennir yn Atodlen 3 i'r Ddeddf hon.

- (7) Schedule 2 contains further amendments relating to the Electoral Commission.

PART 4

DISQUALIFICATION

29 Disqualification from being a Member of the Senedd

- (1) Section 16 of the 2006 Act (disqualification from being Assembly member) is amended as follows.
- (2) Before subsection (1) insert—
 - “(A1) A person is disqualified from being a Member of the Senedd, and from being a candidate to be a Member of the Senedd, if that person—
 - (a) falls within any of the categories of person specified in Part 1 of Schedule 1A, or
 - (b) holds any of the offices specified in the Table in Part 2 of Schedule 1A.”
- (3) In subsection (1)—
 - (a) for the words before paragraph (za) substitute—
 - “(1) A person is disqualified from being a Member of the Senedd (but not from being a candidate to be a Member of the Senedd) if that person—”;
 - (b) after paragraph (za), insert—
 - “(zb) is a member of the House of Lords (but see section 17C),
 - (zc) is a member of the council of a county or county borough in Wales (but see sections 17D, 17E and 17F),
 - (zd) is a member of the Scottish Parliament,
 - (ze) is a member of the Northern Ireland Assembly,
 - (zf) is a member of the European Parliament, or”;
 - (c) omit paragraph (a);
 - (d) omit paragraphs (c) to (e).
- (4) After subsection (1) insert—
 - “(1A) A person returned at an election as a Member of the Senedd is not disqualified under subsection (1)(zd), (ze), (zf) or (b) at any time before the person purports to take the oath of allegiance (or make the corresponding affirmation) in compliance with section 23(1) or 55(2).”
- (5) Omit subsections (2) to (4).
- (6) In subsection (5), for “in that paragraph and this subsection” substitute “for the purposes of this section”.
- (7) Before Schedule 2 to the 2006 Act, insert the Schedule 1A set out in Schedule 3 to this Act.

30 Eithriadau a rhyddhad rhag anghymhwysu

- (1) Mae adran 17 o Ddeddf 2006 (eithriadau a rhyddhad rhag anghymhwysu) wedi ei diwygio fel a ganlyn.
- (2) Hepgorer is-adrannau (1) a (2).
- (3) Yn is-adran (3), hepgorer “or (4)”.
- (4) Ym mhennawd yr adran, yn lle “Exceptions and relief” rhodder “Relief”.

31 Eithriad rhag anghymhwysu yn rhinwedd bod yn Aelod Seneddol: newidiadau i ddyddiadau etholiadau cyffredinol Aelodau o’r Senedd

- (1) Mae adran 17B o Ddeddf 2006 (eithriad rhag anghymhwysu yn rhinwedd bod yn Aelod Seneddol: etholiad cyffredinol aelodau o’r Cynulliad o fewn 372 o ddiwrnodau) wedi ei diwygio fel a ganlyn.
- (2) Ar ôl is-adran (3) mewnosoder –
 - “(3A) Where, at the relevant time, section 3(1A) prevents the poll at the next ordinary general election being held on the day specified in section 3(1) –
 - (a) if an order under section 3(1B) has been made, the expected day is the day on which the poll is required to be held in accordance with section 3(1B);
 - (b) if no order under section 3(1B) has been made, the expected day is the day on which the poll would be held in accordance with section 3(1) if section 3(1A) were disregarded.
 - (3B) Where, at the relevant time, the Presiding Officer has proposed a day for the holding of the poll at the next ordinary general election under section 4(1) –
 - (a) if a proclamation under section 4(2) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 4(2) has been issued, the expected day is the day proposed under section 4(1).”
- (3) Yn is-adran (4) –
 - (a) ym mharagraff (a) –
 - (i) yn lle “an Order in Council under section 5(4) has been made” rhodder “a proclamation under section 5(4) has been issued”;
 - (ii) yn lle “Order”, yn yr ail le y mae’n ymddangos, rhodder “proclamation”;
 - (b) ym mharagraff (b), yn lle “Order in Council under section 5(4) has been made” rhodder “proclamation under section 5(4) has been issued”.
- (4) Yn is-adran (5)(a), yn lle “an order under section 4 (power to vary date of ordinary general election) being made” rhodder “a day being proposed under section 4(1) (power to vary date of ordinary general election)”.

30 Exceptions and relief from disqualification

- (1) Section 17 of the 2006 Act (exceptions and relief from disqualification) is amended as follows.
- (2) Omit subsections (1) and (2).
- (3) In subsection (3), omit “or (4)”.
- (4) In the section heading, for “Exceptions and relief” substitute “Relief”.

31 Exception from disqualification by virtue of being a Member of Parliament: changes to dates of general elections of Members of the Senedd

- (1) Section 17B of the 2006 Act (exception from disqualification by virtue of being a Member of Parliament: general election of Assembly members within 372 days) is amended as follows.
- (2) After subsection (3) insert—
 - “(3A) Where, at the relevant time, section 3(1A) prevents the poll at the next ordinary general election being held on the day specified in section 3(1)—
 - (a) if an order under section 3(1B) has been made, the expected day is the day on which the poll is required to be held in accordance with section 3(1B);
 - (b) if no order under section 3(1B) has been made, the expected day is the day on which the poll would be held in accordance with section 3(1) if section 3(1A) were disregarded.
 - (3B) Where, at the relevant time, the Presiding Officer has proposed a day for the holding of the poll at the next ordinary general election under section 4(1)—
 - (a) if a proclamation under section 4(2) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 4(2) has been issued, the expected day is the day proposed under section 4(1).”
- (3) In subsection (4)—
 - (a) in paragraph (a)—
 - (i) for “an Order in Council under section 5(4) has been made” substitute “a proclamation under section 5(4) has been issued”;
 - (ii) for “Order”, in the second place where it appears, substitute “proclamation”;
 - (b) in paragraph (b), for “Order in Council under section 5(4) has been made” substitute “proclamation under section 5(4) has been issued”.
- (4) In subsection (5)(a), for “an order under section 4 (power to vary date of ordinary general election) being made” substitute “a day being proposed under section 4(1) (power to vary date of ordinary general election)”.

32 Eithriad rhag anghymhwyso yn rhinwedd bod yn aelod o Dŷ'r Arglwyddi

Ar ôl adran 17B o Ddeddf 2006 mewnosoder –

“17C Exception from disqualification by virtue of being a member of the House of Lords

- (1) A person returned at an election as a Member of the Senedd is not disqualified under section 16(1)(zb) (disqualification by virtue of being a member of the House of Lords) at any time in the period of eight days beginning with the day the person is so returned.
- (2) A Member of the Senedd who becomes a member of the House of Lords is not disqualified under section 16(1)(zb) at any time before the end of the period of eight days beginning with the day the person makes and subscribes the oath required by the Parliamentary Oaths Act 1866 (c. 19) (or the corresponding affirmation).
- (3) A person is not disqualified from being a Member of the Senedd under section 16(1)(zb) at any time when the person –
 - (a) has leave of absence from the House of Lords, or
 - (b) has made an application for leave of absence which has not been withdrawn or refused.
- (4) A person who is on leave of absence from the House of Lords immediately before Parliament is dissolved is not disqualified from being a Member of the Senedd under section 16(1)(zb) at any time in the period –
 - (a) beginning with the dissolution of the old Parliament, and
 - (b) ending at the end of the period of eight days beginning with the day of the first meeting of the new Parliament.”

33 Eithriadau rhag anghymhwyso yn rhinwedd bod yn aelod o gyngor sir neu gyngor bwrdeistref sirol

Ar ôl adran 17C o Ddeddf 2006 (fel y'i mewnosodir gan adran 32) mewnosoder –

“17D Exception from disqualification by virtue of being a councillor: recently elected members

- (1) A person returned at an election as a Member of the Senedd is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time before the person purports to take the oath of allegiance (or make the corresponding affirmation) in compliance with section 23(1) or 55(2).
- (2) A Member of the Senedd who is returned at an election as a member of the council of a county or county borough in Wales is not disqualified under section 16(1)(zc) at any time before the person makes a declaration of acceptance of office under section 83 of the Local Government Act 1972 (c. 70).

32 Exception from disqualification by virtue of being a member of the House of Lords

After section 17B of the 2006 Act insert –

“17C Exception from disqualification by virtue of being a member of the House of Lords

- (1) A person returned at an election as a Member of the Senedd is not disqualified under section 16(1)(zb) (disqualification by virtue of being a member of the House of Lords) at any time in the period of eight days beginning with the day the person is so returned.
- (2) A Member of the Senedd who becomes a member of the House of Lords is not disqualified under section 16(1)(zb) at any time before the end of the period of eight days beginning with the day the person makes and subscribes the oath required by the Parliamentary Oaths Act 1866 (c. 19) (or the corresponding affirmation).
- (3) A person is not disqualified from being a Member of the Senedd under section 16(1)(zb) at any time when the person –
 - (a) has leave of absence from the House of Lords, or
 - (b) has made an application for leave of absence which has not been withdrawn or refused.
- (4) A person who is on leave of absence from the House of Lords immediately before Parliament is dissolved is not disqualified from being a Member of the Senedd under section 16(1)(zb) at any time in the period –
 - (a) beginning with the dissolution of the old Parliament, and
 - (b) ending at the end of the period of eight days beginning with the day of the first meeting of the new Parliament.”

33 Exceptions from disqualification by virtue of being a member of a county or county borough council

After section 17C of the 2006 Act (as inserted by section 32) insert –

“17D Exception from disqualification by virtue of being a councillor: recently elected members

- (1) A person returned at an election as a Member of the Senedd is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time before the person purports to take the oath of allegiance (or make the corresponding affirmation) in compliance with section 23(1) or 55(2).
- (2) A Member of the Senedd who is returned at an election as a member of the council of a county or county borough in Wales is not disqualified under section 16(1)(zc) at any time before the person makes a declaration of acceptance of office under section 83 of the Local Government Act 1972 (c. 70).

17E Exception from disqualification by virtue of being a councillor: ordinary election of councillors within 372 days

- (1) This section applies if –
 - (a) a member of the council of a county or county borough in Wales is returned as a Member of the Senedd, and
 - (b) the expected day of the next ordinary election of members of the council is within the period of 372 days beginning with the day the person is so returned (“the return day”).
- (2) The member is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time in the period –
 - (a) beginning with the return day, and
 - (b) ending with the fourth day after the day of the next ordinary election of members of the council.
- (3) For the purposes of subsection (1)(b) the expected day of the next ordinary election of members of the council is to be determined by reference to the circumstances as at the beginning of the return day (“the relevant time”).
- (4) For the purpose of determining the expected day, no account is to be taken of the possibility of –
 - (a) an order under section 37ZA(1) of the Representation of the People Act 1983 (c. 2) (power to vary ordinary day of local elections), or
 - (b) an order under section 87 of the Local Government Act 2000 (c. 22) (power to change year in which local election is held),being made after the relevant time.
- (5) References in this section and section 17F to the “day” of an election are to the day on which the poll at the election is held.

17F Exception from disqualification by virtue of being a councillor: general election of Members of the Senedd within 372 days

- (1) This section applies if –
 - (a) a Member of the Senedd is returned as a member of the council of a county or county borough in Wales, and
 - (b) the expected day of the next general election of Members of the Senedd is within the period of 372 days beginning with the day the person is so returned (“the return day”).
- (2) The member is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time in the period –
 - (a) beginning with the return day, and

17E Exception from disqualification by virtue of being a councillor: ordinary election of councillors within 372 days

- (1) This section applies if –
 - (a) a member of the council of a county or county borough in Wales is returned as a Member of the Senedd, and
 - (b) the expected day of the next ordinary election of members of the council is within the period of 372 days beginning with the day the person is so returned (“the return day”).
- (2) The member is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time in the period –
 - (a) beginning with the return day, and
 - (b) ending with the fourth day after the day of the next ordinary election of members of the council.
- (3) For the purposes of subsection (1)(b) the expected day of the next ordinary election of members of the council is to be determined by reference to the circumstances as at the beginning of the return day (“the relevant time”).
- (4) For the purpose of determining the expected day, no account is to be taken of the possibility of –
 - (a) an order under section 37ZA(1) of the Representation of the People Act 1983 (c. 2) (power to vary ordinary day of local elections), or
 - (b) an order under section 87 of the Local Government Act 2000 (c. 22) (power to change year in which local election is held),being made after the relevant time.
- (5) References in this section and section 17F to the “day” of an election are to the day on which the poll at the election is held.

17F Exception from disqualification by virtue of being a councillor: general election of Members of the Senedd within 372 days

- (1) This section applies if –
 - (a) a Member of the Senedd is returned as a member of the council of a county or county borough in Wales, and
 - (b) the expected day of the next general election of Members of the Senedd is within the period of 372 days beginning with the day the person is so returned (“the return day”).
- (2) The member is not disqualified under section 16(1)(zc) (disqualification by virtue of being a member of the council of a county or county borough in Wales) at any time in the period –
 - (a) beginning with the return day, and

- (b) ending immediately before the day of the next general election of Members of the Senedd.
- (3) For the purposes of subsection (1)(b) the expected day of the next general election of Members of the Senedd is to be determined by reference to the circumstances as at the beginning of the return day ("the relevant time").
- (4) Where, at the relevant time, section 3(1A) prevents the poll at the next ordinary general election being held on the day specified in section 3(1) –
 - (a) if an order under section 3(1B) has been made, the expected day is the day on which the poll is required to be held in accordance with section 3(1B);
 - (b) if no order under section 3(1B) has been made, the expected day is the day on which the poll would be held in accordance with section 3(1) if section 3(1A) were disregarded.
- (5) Where, at the relevant time, the Presiding Officer has proposed a day for the holding of the poll at the next ordinary general election under section 4(1) –
 - (a) if a proclamation under section 4(2) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 4(2) has been issued, the expected day is the day proposed under section 4(1).
- (6) Where, at the relevant time, section 5(2) or (3) (extraordinary general elections) applies –
 - (a) if a proclamation under section 5(4) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 5(4) has been issued but a day has been proposed under section 5(1), that is the expected day;
 - (c) otherwise, the expected day is to be treated as being within the period mentioned in subsection (1)(b).
- (7) For the purpose of determining the expected day, no account is to be taken of the possibility of –
 - (a) a day being proposed under section 4(1) (power to vary date of ordinary general election) after the relevant time, or
 - (b) section 5(2) or (3) (extraordinary general elections) first applying after that time."

34 Effaith anghymhwyso

- (1) Mae adran 18 o Ddeddf 2006 (effaith anghymhwyso) wedi ei diwygio fel a ganlyn.
- (2) Ar y dechrau, mewnosoder –

- (b) ending immediately before the day of the next general election of Members of the Senedd.
- (3) For the purposes of subsection (1)(b) the expected day of the next general election of Members of the Senedd is to be determined by reference to the circumstances as at the beginning of the return day (“the relevant time”).
- (4) Where, at the relevant time, section 3(1A) prevents the poll at the next ordinary general election being held on the day specified in section 3(1) –
 - (a) if an order under section 3(1B) has been made, the expected day is the day on which the poll is required to be held in accordance with section 3(1B);
 - (b) if no order under section 3(1B) has been made, the expected day is the day on which the poll would be held in accordance with section 3(1) if section 3(1A) were disregarded.
- (5) Where, at the relevant time, the Presiding Officer has proposed a day for the holding of the poll at the next ordinary general election under section 4(1) –
 - (a) if a proclamation under section 4(2) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 4(2) has been issued, the expected day is the day proposed under section 4(1).
- (6) Where, at the relevant time, section 5(2) or (3) (extraordinary general elections) applies –
 - (a) if a proclamation under section 5(4) has been issued, the expected day is the day on which the poll is required to be held in accordance with that proclamation;
 - (b) if no proclamation under section 5(4) has been issued but a day has been proposed under section 5(1), that is the expected day;
 - (c) otherwise, the expected day is to be treated as being within the period mentioned in subsection (1)(b).
- (7) For the purpose of determining the expected day, no account is to be taken of the possibility of –
 - (a) a day being proposed under section 4(1) (power to vary date of ordinary general election) after the relevant time, or
 - (b) section 5(2) or (3) (extraordinary general elections) first applying after that time.”

34 Effect of disqualification

- (1) Section 18 of the 2006 Act (effect of disqualification) is amended as follows.
- (2) At the beginning, insert –

“(A1) If a person who is disqualified from being a candidate to be a Member of the Senedd (see section 16(A1)) is nominated as a candidate at a general election of Members of the Senedd or an election to fill a vacancy under section 10, the person’s nomination is void.”

- (3) Hepgorer is-adran (2).
- (4) Yn is-adran (3), hepgorer “or” a pharagraff (b).
- (5) Yn is-adran (8), hepgorer “or” a pharagraff (b).
- (6) Yn adran 19(1) o Ddeddf 2006 (achosion barnwrol o ran anghymhwysu), hepgorer paragraff (b) a’r “or” o’i flaen.

35 Diwygiadau canlyniadol

- (1) Yn adran 427(6B) o Ddeddf Ansolfedd 1986, yn lle “section 16(2) of the Government of Wales Act 2006 by virtue of this section” rhodder “section 16(A1)(a) of the Government of Wales Act 2006 and paragraph 4 of Schedule 1A to that Act”.
- (2) Yn Atodlen 10 i Ddeddf 2006, hepgorer paragraff 18 a’r pennawd italig o’i flaen.
- (3) Yn adran 1(8) o Fesur Comisiynydd Safonau Cynulliad Cenedlaethol Cymru 2009 (mccc 4), hepgorer paragraff (a).
- (4) Yn Atodlen 1 i Ddeddf Ombwdsmon Gwasanaethau Cyhoeddus (Cymru) 2019 (dccc 3) –
 - (a) ym mharagraff 6(1)(d), yn lle “paragraff 7 o’r Atodlen hon neu adran 16(1)(d) o Ddeddf Llywodraeth Cymru 2006 (p. 32)” rhodder “dal swydd yr Ombwdsmon neu Ombwdsmon dros dro”;
 - (b) ym mharagraff 7, hepgorer is-baragraff (2).

RHAN 5

AMRYWIOL

36 Amseriad cyfarfod cyntaf y Senedd ar ôl etholiad cyffredinol

- (1) Yn adran 3 o Ddeddf 2006 (etholiadau cyffredinol arferol), yn is-adran (2)(b), yn lle “seven” rhodder “fourteen”.
- (2) Yn adran 4 o Ddeddf 2006 (pŵer i amrywio dyddiad etholiad cyffredinol arferol), yn is-adran (2)(c), yn lle “seven” rhodder “fourteen”.
- (3) Yn adran 5 o Ddeddf 2006 (etholiadau cyffredinol eithriadol), yn is-adran (4)(c), yn lle “seven” rhodder “fourteen”.

37 Pwerau Comisiwn y Senedd: darparu nwyddau a gwasanaethau

Yn Atodlen 2 i Ddeddf 2006 (Comisiwn y Cynulliad), ym mharagraff 4, yn lle is-baragraff (4) rhodder –

- “(4) The Senedd Commission may –
 - (a) provide goods or services to the public, or
 - (b) make arrangements for the provision of goods or services to the public.

“(A1) If a person who is disqualified from being a candidate to be a Member of the Senedd (see section 16(A1)) is nominated as a candidate at a general election of Members of the Senedd or an election to fill a vacancy under section 10, the person’s nomination is void.”

- (3) Omit subsection (2).
- (4) In subsection (3), omit “or” and paragraph (b).
- (5) In subsection (8), omit “or” and paragraph (b).
- (6) In section 19(1) of the 2006 Act (judicial proceedings as to disqualification), omit paragraph (b) and the “or” before it.

35 Consequential amendments

- (1) In section 427(6B) of the Insolvency Act 1986, for “section 16(2) of the Government of Wales Act 2006 by virtue of this section” substitute “section 16(A1)(a) of the Government of Wales Act 2006 and paragraph 4 of Schedule 1A to that Act”.
- (2) In Schedule 10 to the 2006 Act, omit paragraph 18 and the italic heading before it.
- (3) In section 1(8) of the National Assembly for Wales Commissioner for Standards Measure 2009 (nawm 4), omit paragraph (a).
- (4) In Schedule 1 to the Public Services Ombudsman (Wales) Act 2019 (anaw 3) –
 - (a) in paragraph 6(1)(d), for “paragraph 7 of this Schedule or section 16(1)(d) of the Government of Wales Act 2006 (c. 32)” substitute “holding office as the Ombudsman or an acting Ombudsman”;
 - (b) in paragraph 7, omit sub-paragraph (2).

PART 5

MISCELLANEOUS

36 Timing of first meeting of the Senedd after a general election

- (1) In section 3 of the 2006 Act (ordinary general elections), in subsection (2)(b), for “seven” substitute “fourteen”.
- (2) In section 4 of the 2006 Act (power to vary date of ordinary general election), in subsection (2)(c), for “seven” substitute “fourteen”.
- (3) In section 5 of the 2006 Act (extraordinary general elections), in subsection (4)(c), for “seven” substitute “fourteen”.

37 Powers of the Senedd Commission: provision of goods and services

In Schedule 2 to the 2006 Act (Assembly Commission), in paragraph 4, for sub-paragraph (4) substitute –

- “(4) The Senedd Commission may –
- (a) provide goods or services to the public, or
 - (b) make arrangements for the provision of goods or services to the public.

(4A) The Senedd Commission may charge for goods or services provided under sub-paragraph (4)."

38 Adroddiad ar estyn yr hawl i bleidleisio a newid cymhwystera i fod yn Aelod o'r Senedd

- (1) Rhaid i Weinidogion Cymru, cyn diwedd y cyfnod o 6 mis sy'n dechrau â'r diwrnod cyntaf ar ôl diwedd y cyfnod adrodd, lunio a chyhoeddi adroddiad ar weithrediad y darpariaethau yn y Ddeddf hon sy'n—
 - (a) estyn yr hawl i bleidleisio yn etholiadau'r Senedd i bersonau sy'n 16 neu'n 17 oed,
 - (b) estyn yr hawl i bleidleisio yn etholiadau'r Senedd i bersonau sy'n ddinasyddion tramor cymhwysol,
 - (c) caniatáu i ddinasyddion tramor cymhwysol fod yn Aelodau o'r Senedd, a
 - (d) anghymhwysu aelodau o gynghorau sir a chynghorau bwrdeistref sirol yng Nghymru rhag bod yn Aelodau o'r Senedd.
- (2) Rhaid i'r adroddiad a gyhoeddir o dan is-adran (1) gael ei osod gerbron y Senedd.
- (3) Yn is-adran (1), ystyr "cyfnod adrodd" yw'r cyfnod o 5 mlynedd sy'n dechrau â diwrnod etholiad cyntaf y Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny.

RHAN 6

CYFFREDINOL

39 Pŵer i wneud darpariaeth ganlyniadol a darpariaeth drosiannol etc.

- (1) Os yw Gweinidogion Cymru yn ystyried ei bod yn briodol at ddibenion unrhyw ddarpariaeth yn y Ddeddf hon, o ganlyniad i unrhyw ddarpariaeth ynddi, neu er mwyn rhoi effaith lawn i unrhyw ddarpariaeth ynddi, cânt drwy reoliadau wneud—
 - (a) darpariaeth atodol, darpariaeth gysylltiedig neu ddarpariaeth ganlyniadol;
 - (b) darpariaeth drosiannol, darpariaeth ddarfodol neu ddarpariaeth arbed.
- (2) Caiff rheoliadau o dan is-adran (1) ddiwygio, addasu, diddymu neu ddirymu unrhyw ddeddfiad (gan gynnwys deddfiad sydd wedi ei gynnwys yn y Ddeddf hon).

40 Rheoliadau o dan y Ddeddf hon

- (1) Mae pŵer i wneud rheoliadau o dan y Ddeddf hon—
 - (a) yn arferadwy drwy offeryn statudol;
 - (b) yn cynnwys y pŵer i wneud darpariaeth wahanol at ddibenion gwahanol;
 - (c) yn cynnwys y pŵer i wneud darpariaeth gysylltiedig, atodol, ganlyniadol, drosiannol, ddarfodol neu arbed.
- (2) Ni chaniateir i offeryn statudol y mae'r is-adran hon yn gymwys iddo gael ei wneud oni bai bod drafft o'r offeryn wedi ei osod gerbron y Senedd ac wedi ei gymeradwyo ganddi drwy benderfyniad.
- (3) Mae is-adran (2) yn gymwys i offeryn statudol sy'n cynnwys—

(4A) The Senedd Commission may charge for goods or services provided under sub-paragraph (4)."

38 Report on extension of right to vote and change to qualification for membership of the Senedd

- (1) The Welsh Ministers must, before the end of the period of 6 months beginning with the first day after the end of the reporting period, prepare and publish a report on the operation of the provisions of this Act that—
 - (a) extend the right to vote in Senedd elections to persons who are aged 16 or 17,
 - (b) extend the right to vote in Senedd elections to persons who are qualifying foreign citizens,
 - (c) allow qualifying foreign citizens to be Members of the Senedd, and
 - (d) disqualify members of county and county borough councils in Wales from being Members of the Senedd.
- (2) The report published under subsection (1) must be laid before the Senedd.
- (3) In subsection (1), "reporting period" means the period of 5 years beginning with the day of the first Senedd election at which the poll is held on or after 5 April 2021.

PART 6

GENERAL

39 Power to make consequential and transitional provision etc.

- (1) If the Welsh Ministers consider it appropriate for the purposes of, in consequence of, or for giving full effect to any provision of this Act, they may by regulations make—
 - (a) supplemental, incidental or consequential provision;
 - (b) transitional, transitory or saving provision.
- (2) Regulations under subsection (1) may amend, modify, repeal or revoke any enactment (including an enactment contained in this Act).

40 Regulations under this Act

- (1) A power to make regulations under this Act—
 - (a) is exercisable by statutory instrument;
 - (b) includes the power to make different provision for different purposes;
 - (c) includes the power to make incidental, supplementary, consequential, transitional, transitory or saving provision.
- (2) A statutory instrument to which this subsection applies may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, the Senedd.
- (3) Subsection (2) applies to a statutory instrument containing—

- (a) rheoliadau o dan adran 15(1) (gwahoddiadau i gofrestru: darpariaeth bellach am bersonau o dan 16 oed) neu adran 39 (pŵer i wneud darpariaeth ganlyniadol a throsiannol etc.) sy'n diwygio, diddymu neu'n addasu darpariaeth mewn—
 - (i) Deddf gan Senedd y Deyrnas Unedig,
 - (ii) Mesur a basiwyd o dan Ran 3 o Ddeddf 2006, neu
 - (iii) Deddf a basiwyd o dan Ran 4 o Ddeddf 2006;
 - (b) rheoliadau o dan adran 26(1).
- (4) Mae offeryn statudol sy'n cynnwys rheoliadau o dan y Ddeddf hon nad yw is-adran (2) yn gymwys iddo yn ddarostyngedig i'w ddiddymu yn unol â phenderfyniad gan y Senedd.

41 Dehongliad cyffredinol

Yn y Ddeddf hon—

ystyr “Deddf 1983” (“1983 Act”) yw Deddf Cynrychiolaeth y Bobl 1983 (p. 2);
 ystyr “Deddf 2006” (“2006 Act”) yw Deddf Llywodraeth Cymru 2006 (p. 32);
 ystyr “deddfiad” (“*enactment*”) yw deddfiad pa bryd bynnag y'i deddfir neu y'i gwneir;
 ystyr “Gorchymyn 2007” (“2007 Order”) yw Gorchymyn Cynulliad Cenedlaethol Cymru (Cynrychiolaeth y Bobl) 2007 (O.S. 2007/236);
 ystyr “Rheoliadau 2001” (“2001 Regulations”) yw Rheoliadau Cynrychiolaeth y Bobl (Cymru a Lloegr) 2001 (O.S. 2001/341);
 ystyr “Senedd” yw Senedd Cymru;
 ystyr “swyddog cofrestru” (“*registration officer*”) yw swyddog cofrestru a benodir gan awdurdod lleol o dan adran 8(2A) o Ddeddf 1983.

42 Dod i rym

- (1) Daw'r darpariaethau a ganlyn i rym ar y diwrnod y caiff y Ddeddf hon y Cydsyniad Brenhinol—
- (a) Rhan 1 (adran 1);
 - (b) yn Rhan 3—
 - (i) adran 10, ond mae'r adran honno yn cael effaith yn unol ag adran 10(4);
 - (ii) adran 11, ond mae'r adran honno yn cael effaith yn unol ag adran 11(2);
 - (iii) adran 27, ond mae is-adrannau (2)(d), (3) a (4) o'r adran honno yn cael effaith yn unol ag adran 27(5);
 - (c) Rhan 4 (adrannau 29 i 35 ac Atodlen 3), ond mae iddi effaith yn unig at ddibenion etholiad y Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny;
 - (d) yn Rhan 5, adrannau 37 a 38;
 - (e) y Rhan hon (adrannau 39 i 43).
- (2) Mae Rhan 2 (adrannau 2 i 9 ac Atodlen 1) yn dod i rym ar 6 Mai 2020.
- (3) Yn Rhan 3—

- (a) regulations under section 15(1) (invitations to register: further provision about persons under the age of 16) or section 39 (power to make consequential and transitional provision etc.) that amend, repeal or modify provision in—
 - (i) an Act of the United Kingdom Parliament,
 - (ii) a Measure passed under Part 3 of the 2006 Act, or
 - (iii) an Act passed under Part 4 of the 2006 Act;
 - (b) regulations under section 26(1).
- (4) A statutory instrument containing regulations under this Act to which subsection (2) does not apply is subject to annulment in pursuance of a resolution of the Senedd.

41 General interpretation

In this Act—

- “1983 Act” (“*Deddf 1983*”) means the Representation of the People Act 1983 (c. 2);
- “2001 Regulations” (“*Rheoliadau 2001*”) means the Representation of the People (England and Wales) Regulations 2001 (S.I. 2001/341);
- “2006 Act” (“*Deddf 2006*”) means the Government of Wales Act 2006 (c. 32);
- “2007 Order” (“*Gorchymyn 2007*”) means the National Assembly for Wales (Representation of the People) Order 2007 (S.I. 2007/236);
- “enactment” (“*deddfiad*”) means an enactment whenever enacted or made;
- “registration officer” (“*swyddog cofrestru*”) means a registration officer appointed by a local authority under section 8(2A) of the 1983 Act;
- “Senedd” means Senedd Cymru.

42 Coming into force

- (1) The following provisions come into force on the day on which this Act receives Royal Assent—
- (a) Part 1 (section 1);
 - (b) in Part 3—
 - (i) section 10, but that section has effect in accordance with section 10(4);
 - (ii) section 11, but that section has effect in accordance with section 11(2);
 - (iii) section 27, but subsections (2)(d), (3) and (4) of that section have effect in accordance with section 27(5);
 - (c) Part 4 (sections 29 to 35 and Schedule 3), but it only has effect for the purposes of a Senedd election at which the poll is held on or after 5 April 2021;
 - (d) in Part 5, sections 37 and 38;
 - (e) this Part (sections 39 to 43).
- (2) Part 2 (sections 2 to 9 and Schedule 1) comes into force on 6 May 2020.
- (3) In Part 3—

- (a) mae adrannau 12 i 26 yn dod i rym ar 1 Mehefin 2020;
- (b) mae adran 28 ac Atodlen 2 yn dod i rym ar ddiwrnod a bennir gan Weinidogion Cymru mewn gorchymyn a wneir drwy offeryn statudol.
- (4) Caiff gorchymyn o dan is-adran (3)(b) gynnwys darpariaeth drosiannol, darpariaeth ddarfodol neu ddarpariaeth arbed.
- (5) Yn Rhan 5, mae adran 36 yn dod i rym ar ddiwrnod etholiad cyntaf y Senedd pan gynhelir y bleidlais ar 5 Ebrill 2021 neu wedi hynny.

43 Enw byr

Enw byr y Ddeddf hon yw Deddf Senedd ac Etholiadau (Cymru) 2020.

- (a) sections 12 to 26 come into force on 1 June 2020;
- (b) section 28 and Schedule 2 come into force on a day appointed by the Welsh Ministers in an order made by statutory instrument.
- (4) An order under subsection (3)(b) may include transitional, transitory or saving provision.
- (5) In Part 5, section 36 comes into force on the day of the first Senedd election at which the poll is held on or after 5 April 2021.

43 Short title

The short title of this Act is the Senedd and Elections (Wales) Act 2020.

ATODLEN 1
(a gyflwynir gan adran 9)

MÂN DDIWYGIADAU A DIWYGIADAU CANLYNIADOL SY’N YMWNEUD Â RHAN
2

Deddf Rhyddid Gwybodaeth 2000 (p. 36)

- 1 Mae Rhan 6 o Atodlen 1 i Ddeddf Rhyddid Gwybodaeth 2000 wedi ei diwygio fel a ganlyn –
- (a) hepgorer “The National Assembly for Wales Remuneration Board”;
 - (b) yn y lle priodol mewnosoder “The Independent Remuneration Board of the Senedd”.

Deddf Llywodraeth Cymru 2006 (p. 32)

- 2 (1) Mae Deddf 2006 wedi ei diwygio fel a ganlyn.
- (2) Yn enw Rhan 1, yn lle “National Assembly for Wales” rhodder “Senedd Cymru”.
- (3) Yn adran 1 –
- (a) yn is-adran (1), yn lle “an Assembly” rhodder “a parliament”;
 - (b) yn is-adran (3), yn lle “Members of the Assembly (referred to in this Act as “Assembly members”)” rhodder “Members of the Senedd”.
- (4) Yn adran 20(8), yn lle “National Assembly for Wales Remuneration Board” rhodder “Independent Remuneration Board of the Senedd”.
- (5) Yn adran 23(5), yn lle “Assembly member’s” rhodder “Member’s”.
- (6) Yn adran 126A –
- (a) yn is-adran (9), yn lle “National Assembly for Wales” rhodder “Senedd”;
 - (b) yn is-adran (10), yn lle “National Assembly for Wales” rhodder “Senedd”.
- (7) Yn adran 150A –
- (a) yn y pennawd, yn lle “Change of name of the Assembly etc: translation of references” rhodder “Translation of references to Senedd Cymru etc.”;
 - (b) hepgorer is-adran (1);
 - (c) yn is-adran (2) –
 - (i) yn lle “, the National Assembly for Wales Commission or an Act of the National Assembly for Wales (as the case may be), or the Welsh equivalent shown in subsection (1)” rhodder “(or Cynulliad Cenedlaethol Cymru), the National Assembly for Wales Commission (or Comisiwn Cynulliad Cenedlaethol Cymru) or Acts of the National Assembly for Wales (or Deddfau Cynulliad Cenedlaethol Cymru) (as the case may be)”;
 - (ii) yn lle “new name” rhodder “name given by Part 2 of the Senedd and Elections (Wales) Act 2019”;
 - (d) ar ôl is-adran (2) mewnosoder –

SCHEDULE 1
(introduced by section 9)

MINOR AND CONSEQUENTIAL AMENDMENTS RELATING TO PART 2

Freedom of Information Act 2000 (c. 36)

- 1 Part 6 of Schedule 1 to the Freedom of Information Act 2000 is amended as follows—
- (a) omit “The National Assembly for Wales Remuneration Board”;
 - (b) in the appropriate place insert “The Independent Remuneration Board of the Senedd”.

Government of Wales Act 2006 (c. 32)

- 2 (1) The 2006 Act is amended as follows.
- (2) In the title of Part 1, for “National Assembly for Wales” substitute “Senedd Cymru”.
- (3) In section 1—
- (a) in subsection (1), for “an Assembly” substitute “a parliament”;
 - (b) in subsection (3), for “Members of the Assembly (referred to in this Act as “Assembly members”)” substitute “Members of the Senedd”.
- (4) In section 20(8), for “National Assembly for Wales Remuneration Board” substitute “Independent Remuneration Board of the Senedd”.
- (5) In section 23(5), for “Assembly member’s” substitute “Member’s”.
- (6) In section 126A—
- (a) in subsection (9), for “National Assembly for Wales” substitute “Senedd”;
 - (b) in subsection (10), for “National Assembly for Wales” substitute “Senedd”.
- (7) In section 150A—
- (a) in the heading, for “Change of name of the Assembly etc: translation of references” substitute “Translation of references to Senedd Cymru etc.”;
 - (b) omit subsection (1);
 - (c) in subsection (2)—
 - (i) for “, the National Assembly for Wales Commission or an Act of the National Assembly for Wales (as the case may be), or the Welsh equivalent shown in subsection (1)” substitute “(or Cynulliad Cenedlaethol Cymru), the National Assembly for Wales Commission (or Comisiwn Cynulliad Cenedlaethol Cymru) or Acts of the National Assembly for Wales (or Deddfau Cynulliad Cenedlaethol Cymru) (as the case may be)”;
 - (ii) for “new name” substitute “name given by Part 2 of the Senedd and Elections (Wales) Act 2019”;
 - (d) after subsection (2) insert—

“(3) Unless the context requires otherwise, a reference to Senedd Cymru or the Welsh Parliament, the Senedd Commission (or Comisiwn y Senedd) or Acts of Senedd Cymru (or Deddfau Senedd Cymru) (as the case may be), in –

- (a) any enactment (including any enactment comprised in or made under this Act) or prerogative instrument, or
- (b) any other instrument or document,

is to be read as including a reference to the previous name.”

(8) Yn adran 159 –

- (a) hepgorer y cofnod ar gyfer “the Assembly” hyd at y cofnod ar gyfer “Assembly electoral region”;
- (b) hepgorer y cofnod ar gyfer “Assembly member” hyd at y cofnod ar gyfer “Assembly’s legislative competence (in relation to Acts of the Assembly)”;
- (c) mewnosoder yn y lleoedd priodol –

“Member of the Senedd	section 1(2A)”
“the Senedd	section 1(1)”
“the Senedd Commission	section 27(1)”
“Senedd constituency	section 2(1)”
“Senedd constituency member	section 1(2)(a)”
“Senedd electoral region	section 2(2) and (3)”
“Senedd proceedings	section 1(5)”
“Senedd regional member	section 1(2)(b)”
“Senedd’s legislative competence (in relation to Acts of the Senedd)	section 108A”.

(9) Yn Atodlen 7B, ym mharagraff 7(2) –

- (a) ym mharagraff (a) –
 - (i) yn is-baragraff (i), yn lle “the National Assembly for Wales” rhodder “Senedd Cymru”;
 - (ii) yn is-baragraff (xi), yn lle “the National Assembly for Wales Commission” rhodder “the Senedd Commission”;
- (b) ym mharagraff (c)(i), yn lle “Acts of the National Assembly for Wales” rhodder “Acts of Senedd Cymru”.

(10) Yn Atodlen 9A –

- (a) hepgorer y cofnod ar gyfer “The National Assembly for Wales Commissioner for Standards or Comisiynydd Safonau ar gyfer Cynulliad Cenedlaethol Cymru.”;
- (b) hepgorer y cofnod ar gyfer “The National Assembly for Wales Remuneration Board or Bwrdd Taliadau Cynulliad Cenedlaethol Cymru.”;

“(3) Unless the context requires otherwise, a reference to Senedd Cymru or the Welsh Parliament, the Senedd Commission (or Comisiwn y Senedd) or Acts of Senedd Cymru (or Deddfau Senedd Cymru) (as the case may be), in –

- (a) any enactment (including any enactment comprised in or made under this Act) or prerogative instrument, or
- (b) any other instrument or document,

is to be read as including a reference to the previous name.”

(8) In section 159 –

- (a) omit the entry for “the Assembly” to the entry for “Assembly electoral region”;
- (b) omit the entry for “Assembly member” to the entry for “Assembly’s legislative competence (in relation to Acts of the Assembly)”;
- (c) insert in the appropriate places –

“Member of the Senedd	section 1(2A)”
“the Senedd	section 1(1)”
“the Senedd Commission	section 27(1)”
“Senedd constituency	section 2(1)”
“Senedd constituency member	section 1(2)(a)”
“Senedd electoral region	section 2(2) and (3)”
“Senedd proceedings	section 1(5)”
“Senedd regional member	section 1(2)(b)”
“Senedd’s legislative competence (in relation to Acts of the Senedd)	section 108A”.

(9) In Schedule 7B, in paragraph 7(2) –

- (a) in paragraph (a) –
 - (i) in sub-paragraph (i), for ““the National Assembly for Wales”” substitute ““Senedd Cymru””;
 - (ii) in sub-paragraph (xi), for ““the National Assembly for Wales Commission”” substitute ““the Senedd Commission””;
- (b) in paragraph (c)(i), for ““Acts of the National Assembly for Wales”” substitute ““Acts of Senedd Cymru””.

(10) In Schedule 9A –

- (a) omit the entry for “The National Assembly for Wales Commissioner for Standards or Comisiynydd Safonau ar gyfer Cynulliad Cenedlaethol Cymru.”;
- (b) omit the entry for “The National Assembly for Wales Remuneration Board or Bwrdd Taliadau Cynulliad Cenedlaethol Cymru.”;

- (c) yn y lle priodol mewnoder “The Independent Remuneration Board of the Senedd or Bwrdd Taliadau Annibynnol y Senedd.”;
- (d) yn y lle priodol mewnoder “The Senedd Commissioner for Standards or Comisiynydd Safonau y Senedd.”
- (11) Mae is-baragraffau (15) i (19) yn gymwys i bob darpariaeth sy’n cynnwys y geiriau sydd i’w hamnewid gan yr is-baragraffau hynny ar ôl i’r diwygiadau yn Rhan 2 ac is-baragraffau (3) i (10) gael eu gwneud, yn ddarostyngedig i is-baragraffau (12) a (13).
- (12) Nid yw is-baragraffau (15) i (19) yn gymwys i—
 - (a) enwau deddfiadau a chyfeiriadau at enwau deddfiadau;
 - (b) darpariaethau a ddiddymwyd yn Neddf 2006 sydd wedi eu harbed;
 - (c) adran 150A;
 - (d) paragraff 3(8) o Atodlen 2;
 - (e) Atodlen 10;
 - (f) Atodlen 11;
 - (g) Atodlen 12.
- (13) Nid yw is-baragraffau (18) ac (19) yn gymwys i gyfeiriadau at “Assembly Measure” neu “Assembly Measures”.
- (14) Yn y paragraff hwn, mae “darpariaeth” yn cynnwys enw, croesbennawd neu bennawd.
- (15) Yn lle “an Assembly member”, ym mhob lle y mae’n ymddangos, rhodder “a Member of the Senedd”.
- (16) Yn lle “Assembly member”, ym mhob lle y mae’n ymddangos ar ôl i’r diwygiadau yn is-baragraff (15) gael eu gwneud, rhodder “Member of the Senedd”.
- (17) Yn lle “Assembly members”, ym mhob lle y mae’n ymddangos, rhodder “Members of the Senedd”.
- (18) Yn lle “an Assembly”, ym mhob lle y mae’n ymddangos ar ôl i’r diwygiadau yn is-baragraffau (15), (16) a (17) gael eu gwneud, rhodder “a Senedd”.
- (19) Yn lle “Assembly” ac “Assembly’s”, ym mhob lle y maent yn ymddangos ar ôl i’r diwygiadau yn is-baragraffau (15), (16), (17) a (18) gael eu gwneud, rhodder “Senedd” a “Senedd’s”, fel y bo’n briodol.

Mesur Comisiynydd Safonau Cynulliad Cenedlaethol Cymru 2009 (mccc 4)

- 3 (1) Mae Mesur Comisiynydd Safonau Cynulliad Cenedlaethol Cymru 2009 wedi ei ddiwygio fel a ganlyn.
- (2) Yn y croesbennawd o flaen adran 1, yn lle “Cynulliad Cenedlaethol Cymru” rhodder “y Senedd”.
- (3) Yn adran 1—
 - (a) yn is-adrannau (3)(e) ac (f) hepgorer “Cynulliad”;
 - (b) yn is-adran 8(c), hepgorer “Cynulliad” yn yr ail le y mae’n ymddangos.
- (4) Yn adran 20—

- (c) in the appropriate place insert “The Independent Remuneration Board of the Senedd or Bwrdd Taliadau Annibynnol y Senedd.”;
- (d) in the appropriate place insert “The Senedd Commissioner for Standards or Comisiynydd Safonau y Senedd.”
- (11) Sub-paragraphs (15) to (19) apply to every provision containing the words to be substituted by those sub-paragraphs after the amendments in Part 2 and sub-paragraphs (3) to (10) have been made, subject to sub-paragraphs (12) and (13).
- (12) Sub-paragraphs (15) to (19) do not apply to –
 - (a) citations of enactments;
 - (b) repealed provisions of the 2006 Act that are saved;
 - (c) section 150A;
 - (d) paragraph 3(8) of Schedule 2;
 - (e) Schedule 10;
 - (f) Schedule 11;
 - (g) Schedule 12.
- (13) Sub-paragraphs (18) and (19) do not apply to references to “Assembly Measure” or “Assembly Measures”.
- (14) In this paragraph, “provision” includes a title, cross-heading or heading.
- (15) For “an Assembly member”, in each place where it appears, substitute “a Member of the Senedd”.
- (16) For “Assembly member”, in each place where it appears after the amendments in sub-paragraph (15) have been made, substitute “Member of the Senedd”.
- (17) For “Assembly members”, in each place where it appears, substitute “Members of the Senedd”.
- (18) For “an Assembly”, in each place where it appears after the amendments in sub-paragraphs (15), (16) and (17) have been made, substitute “a Senedd”.
- (19) For “Assembly” and “Assembly’s”, in each place where they appear after the amendments in sub-paragraphs (15), (16), (17) and (18) have been made, substitute “Senedd” and “Senedd’s”, as appropriate.

National Assembly for Wales Commissioner for Standards Measure 2009 (nawm 4)

- 3
- (1) The National Assembly for Wales Commissioner for Standards Measure 2009 is amended as follows.
 - (2) In the cross-heading before section 1, for “National Assembly for Wales” substitute “Senedd”.
 - (3) In section 1 –
 - (a) in subsections (3)(e) and (f) omit “Assembly”;
 - (b) in subsection (8)(c), omit “Assembly” in the second place where it appears.
 - (4) In section 20 –

- (a) yn is-adran (1) –
 - (i) hepgorer y diffiniad o “Aelod Cynulliad”, ac yn y lle priodol mewnosoder –
 - “mae “Aelod o’r Senedd” (“Member of the Senedd”) yn cynnwys –
 - (a) at ddibenion adran 1(3)(a) a (b) yn unig, y Cwnsler Cyffredinol hyd yn oed os nad yw’r swyddog hwnnw’n Aelod o’r Senedd, a
 - (b) ac eithrio at ddibenion adran 1(3)(a) a (b), cyn Aelod o’r Senedd,”;
 - (ii) yn y diffiniad o “y Comisiwn”, yn lle “Cynulliad Cenedlaethol Cymru” rhodder “y Senedd”;
 - (iii) yn y diffiniad o “Cwnsler Cyffredinol” hepgorer “Cynulliad”;
 - (b) yn is-adran (2)(a), yn lle “Gynulliad Cenedlaethol Cymru” rhodder “Senedd Cymru.”
- (5) Yn yr Atodlen –
- (a) yn y pennawd, yn lle “CYNULLIAD CENEDLAETHOL CYMRU” rhodder “Y SENEDD”;
 - (b) ym mharagraff 3, yn lle “Cynulliad Cenedlaethol Cymru” rhodder “y Senedd”.
- (6) Mae is-baragraffau (8) i (11) yn gymwys i bob darpariaeth sy’n cynnwys y geiriau sydd i’w hamnewid gan yr is-baragraffau hynny ar ôl i’r diwygiadau yn Rhan 2 ac is-baragraffau (2) i (5) gael eu gwneud, yn ddarostyngedig i is-baragraff (7).
- (7) Nid yw is-baragraffau (8) i (11) yn gymwys i –
- (a) enwau deddfiadau a chyfeiriadau at enwau deddfiadau;
 - (b) adran 21(1).
- (8) Yn lle “Aelod Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Aelod o’r Senedd”.
- (9) Yn lle “Aelodau Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Aelodau o’r Senedd”.
- (10) Yn adran 8(2)(a)(iv), yn lle “Aelodau’r Cynulliad” rhodder “Aelodau o’r Senedd”.
- (11) Yn lle “Cynulliad”, ym mhob lle y mae’n ymddangos ar ôl i’r diwygiadau yn is-baragraffau (8) i (10) gael eu gwneud, rhodder “Senedd”.

Mesur Cynulliad Cenedlaethol Cymru (Taliadau) 2010 (mccc 4)

- 4 (1) Mae Mesur Cynulliad Cenedlaethol Cymru (Taliadau) 2010 wedi ei ddiwygio fel a ganlyn.
- (2) Ym mhennawd adran 1, yn lle “Bwrdd Taliadau Cynulliad Cenedlaethol Cymru” rhodder “Bwrdd Taliadau Annibynnol y Senedd”.

- (a) in subsection (1) –
 - (i) omit the definition of “Assembly Member” and after the definition of “the Committee on Standards of Conduct” (but before the “and” after it) insert –
 - ““Member of the Senedd” (“Aelod o’r Senedd”) includes –
 - (a) for the purposes of section 1(3)(a) and (b) only, the Counsel General even where that officer is not a Member of the Senedd, and
 - (b) except for the purposes of section 1(3)(a) and (b), a former Member of the Senedd,”;
 - (ii) in the definition of “the Commission”, for “National Assembly for Wales” substitute “Senedd”;
 - (iii) in the definition of “Counsel General” omit “Assembly”;
 - (b) in subsection (2)(a), for “the National Assembly for Wales” substitute “Senedd Cymru.”
- (5) In the Schedule –
- (a) in the heading, for “NATIONAL ASSEMBLY FOR WALES” substitute “SENEDD”;
 - (b) in paragraph 3, for “National Assembly for Wales” substitute “Senedd”.
- (6) Sub-paragraphs (8) to (12) apply to every provision containing the words to be substituted by those sub-paragraphs after the amendments in Part 2 and sub-paragraphs (2) to (5) have been made, subject to sub-paragraph (7).
- (7) Sub-paragraphs (8) to (12) do not apply to –
- (a) citations of enactments;
 - (b) section 21(1).
- (8) For “an Assembly Member”, in each place where it appears, substitute “a Member of the Senedd”.
- (9) For “Assembly Member”, in each place where it appears after the amendment in sub-paragraph (8) has been made, substitute “Member of the Senedd”.
- (10) For “Assembly Members”, in each place where it appears, substitute “Members of the Senedd”.
- (11) For “an Assembly”, in each place where it appears after the amendments in sub-paragraphs (8) to (10) have been made, substitute “a Senedd”.
- (12) For “Assembly”, in each place where it appears after the amendments in sub-paragraphs (8) to (11) have been made, substitute “Senedd”.

National Assembly for Wales (Remuneration) Measure 2010 (nawm 4)

- 4 (1) The National Assembly for Wales (Remuneration) Measure 2010 is amended as follows.
- (2) In the heading of section 1, for “National Assembly for Wales Remuneration Board” substitute “Independent Remuneration Board of the Senedd”.

- (3) Yn adran 2(2)(b) ac ym mharagraff 4 o Atodlen 2, yn lle “Cynulliad” rhodder “Senedd”.
- (4) Yn adran 2(4)(b) ac adran 14(1), yn lle “grwpiau o aelodau’r Cynulliad” rhodder “grwpiau o Aelodau”.
- (5) Hepgorer adran 17.
- (6) Yn Atodlen 1, ym mharagraff 1 –
 - (a) yn is-baragraff (d), yn lle “aelod Cynulliad rhanbarthol” rhodder “Aelod rhanbarthol o’r Senedd”;
 - (b) yn is-baragraff (g) hepgorer “Cynulliad”;
 - (c) yn is-baragraff (h), yn lle “grŵp o aelodau’r Cynulliad” rhodder “grŵp o Aelodau”;
 - (d) yn is-baragraff (j), yn lle “Cynulliad Cenedlaethol Cymru” rhodder “y Senedd”;
 - (e) yn is-baragraff (n) hepgorer “Cynulliad”.
- (7) Mae is-baragraffau (9) i (12) yn gymwys i bob darpariaeth sy’n cynnwys y geiriau sydd i’w hamnewid gan yr is-baragraffau hynny ar ôl i’r diwygiadau yn Rhan 2 ac is-baragraffau (3) i (6) gael eu gwneud, yn ddarostyngedig i is-baragraff (8).
- (8) Nid yw is-baragraffau (9) i (12) yn gymwys i –
 - (a) enwau deddfiadau a chyfeiriadau at enwau deddfiadau;
 - (b) adrannau 15, 19 ac 20;
 - (c) paragraff 1(e) o Atodlen 1;
 - (d) Atodlen 3.
- (9) Yn lle “aelod o’r Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Aelod o’r Senedd”.
- (10) Yn lle “aelodau’r Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Aelodau o’r Senedd”.
- (11) Yn lle “aelodau o’r Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Aelodau o’r Senedd”.
- (12) Yn lle “Cynulliad”, ym mhob lle y mae’n ymddangos ar ôl i’r diwygiadau yn is-baragraffau (9), (10) a (11) gael eu gwneud, rhodder “Senedd”.

Deddf Deddfwriaeth (Cymru) 2019 (dccc 4)

5 (1) Mae Deddf Deddfwriaeth (Cymru) 2019 wedi ei diwygio fel a ganlyn.

(2) Yn adran 2 –

- (a) yn is-adran (2), yn lle “Cynulliad Cenedlaethol Cymru” rhodder “Senedd Cymru”;
- (b) yn is-adrannau (5) a (6), yn lle “y Cynulliad Cenedlaethol” rhodder “Senedd Cymru” ac yn is-adran (7), yn lle “i’r Cynulliad Cenedlaethol” rhodder “i Senedd Cymru”.

(3) Yn y darpariaethau a grybwyllir yn is-baragraff (4) –

- (a) hepgorer “Cynulliad”;

- (3) In section 2(2)(b) and in paragraph 4 of Schedule 2, for “Assembly’s”, substitute “Senedd’s”.
- (4) In section 2(4)(b) and section 14(1), for “groups of Assembly members” substitute “groups of Members”.
- (5) Omit section 17.
- (6) In Schedule 1, in paragraph 1 –
 - (a) in sub-paragraph (d), for “regional Assembly member” substitute “regional Member of the Senedd”;
 - (b) in sub-paragraph (g) omit “Assembly”;
 - (c) in sub-paragraph (h), for “group of Assembly members” substitute “group of Members”;
 - (d) in sub-paragraph (j), for “National Assembly for Wales” substitute “Senedd”;
 - (e) in sub-paragraph (n) omit “Assembly”.
- (7) Sub-paragraphs (9) to (12) apply to every provision containing the words to be substituted by those sub-paragraphs after the amendments in Part 2 and sub-paragraphs (3) to (6) have been made, subject to sub-paragraph (8).
- (8) Sub-paragraphs (9) to (12) do not apply to –
 - (a) citations of enactments;
 - (b) sections 15, 19 and 20;
 - (c) paragraph 1(e) of Schedule 1;
 - (d) Schedule 3.
- (9) For “an Assembly member”, in each place where it appears, substitute “a Member of the Senedd”.
- (10) For “Assembly members”, in each place where it appears, substitute “Members of the Senedd”.
- (11) For “an Assembly”, in each place where it appears after the amendments in sub-paragraphs (9) and (10) have been made, substitute “a Senedd”.
- (12) For “Assembly”, in each place where it appears after the amendments in sub-paragraphs (9), (10) and (11) have been made, substitute “Senedd”.

Legislation (Wales) Act 2019 (anaw 4)

- 5 (1) The Legislation (Wales) Act 2019 is amended as follows.
- (2) In section 2 –
 - (a) in subsection (2), for “the National Assembly for Wales” substitute “Senedd Cymru”;
 - (b) in subsections (5), (6) and (7), for “the National Assembly” substitute “Senedd Cymru”.
- (3) In the provisions mentioned in sub-paragraph (4) –
 - (a) omit “Assembly”;

- (b) yn lle “is-offeryn Cymreig” rhodder “offeryn”.
- (4) Y darpariaethau yw –
- (a) adran 13(3);
 - (b) adran 16(2)(a), (3)(a) a (5);
 - (c) adran 25(1)(b);
 - (d) adran 26(1)(b).
- (5) Yn adran 40 –
- (a) ym mhennawd yr adran ac is-adran (1), yn lle “Cynulliad”, ym mhob lle y mae’n ymddangos, rhodder “Senedd”;
 - (b) yn is-adran (2) –
 - (i) yn y geiriau o flaen paragraff (a), yn lle “Cynulliad” rhodder “Senedd”;
 - (ii) ym mharagraff (a), yn lle “Cynulliad Cenedlaethol Cymru” rhodder “Senedd Cymru”;
 - (iii) ym mharagraff (b), yn lle “Cynulliad Cenedlaethol Cymru” ac “y Cynulliad Cenedlaethol” rhodder “Senedd Cymru”;
 - (iv) ym mharagraffau (c), (d) ac (e), yn lle “Gynulliad Cenedlaethol Cymru” a “Cynulliad Cenedlaethol Cymru” rhodder “Senedd Cymru”;
 - (c) yn is-adran (3)(b), yn lle “Cynulliad” rhodder “Senedd”.
- (6) Yn adran 43(2) a (3), yn lle “Cynulliad Cenedlaethol Cymru” a “Gynulliad Cenedlaethol Cymru” rhodder “Senedd Cymru”.
- (7) Yn y Tabl yn Atodlen 1 –
- (a) hepgorer y cofnodion ar gyfer –
 - “Comisiwn Cynulliad Cenedlaethol Cymru (*National Assembly for Wales Commission*)”;
 - “Cynulliad Cenedlaethol Cymru (*National Assembly for Wales*)”;
 - “Deddf Cynulliad (*Assembly Act*)”;
 - (b) mewnosoder y cofnodion a ganlyn yn y lleoedd priodol yn nhrefn yr wyddor –

“Aelod o’r Senedd (<i>Member of the Senedd</i>)	mae “Aelod o’r Senedd” i’w ddehongli yn unol ag adran 1(2A) o Ddeddf Llywodraeth Cymru 2006 (p. 32)”;
“Comisiwn y Senedd (<i>Senedd Commission</i>)	ystyr “Comisiwn y Senedd” yw’r Comisiwn a sefydlwyd gan adran 27 o Ddeddf Llywodraeth Cymru 2006 (p. 32) (ac a enwyd yn wreiddiol yn Gomisiwn Cynulliad Cenedlaethol Cymru)”;
“Deddf gan Senedd Cymru (<i>Act of Senedd Cymru</i>)	ystyr “Deddf gan Senedd Cymru” yw Deddf a ddeddfir o dan Ran 4 o Ddeddf Llywodraeth Cymru 2006 (p. 32) (pa un ai fel Deddf gan Senedd Cymru neu Ddeddf gan Gynulliad Cenedlaethol Cymru)”;

- (b) omit “Welsh subordinate”.
- (4) The provisions are –
- (a) section 13(3);
 - (b) section 16(2)(a), (3)(a) and (5);
 - (c) section 25(1)(b);
 - (d) section 26(1)(b).
- (5) In section 40 –
- (a) in the section heading and subsection (1), for “Assembly”, in each place where it appears, substitute “Senedd”;
 - (b) in subsection (2) –
 - (i) in the words before paragraph (a), for “Assembly” substitute “Senedd”;
 - (ii) in paragraph (a), for “the National Assembly for Wales” substitute “Senedd Cymru”;
 - (iii) in paragraph (b), for “the National Assembly for Wales” and “the National Assembly” substitute “Senedd Cymru”;
 - (iv) in paragraphs (c), (d) and (e), for “the National Assembly for Wales” substitute “Senedd Cymru”;
 - (c) in subsection (3)(b), for “Assembly” substitute “Senedd”.
- (6) In section 43(2) and (3), for “the National Assembly for Wales” substitute “Senedd Cymru”.
- (7) In the Table in Schedule 1 –
- (a) omit the entries for –
 - “Assembly Act (*Deddf Cynulliad*)”;
 - “National Assembly for Wales (*Cynulliad Cenedlaethol Cymru*)”;
 - “National Assembly for Wales Commission (*Comisiwn Cynulliad Cenedlaethol Cymru*)”;
 - (b) insert the following entries in the appropriate places in alphabetical order –

“Act of the Parliament of the United Kingdom (<i>Deddf gan Senedd y Deyrnas Unedig</i>)	“Act of the Parliament of the United Kingdom” includes an Act of the Parliament of Great Britain or of the Parliament of England”;
“Act of Senedd Cymru (<i>Deddf gan Senedd Cymru</i>)	“Act of Senedd Cymru” means an Act enacted under Part 4 of the Government of Wales Act 2006 (c. 32) (whether as an Act of Senedd Cymru or an Act of the National Assembly for Wales)”;
“Member of the Senedd (<i>Aelod o’r Senedd</i>)	“Member of the Senedd” is to be interpreted in accordance with section 1(2A) of the Government of Wales Act 2006 (c. 32)”;

“Deddf gan Senedd y Deyrnas Unedig (<i>Act of the Parliament of the United Kingdom</i>)	mae “Deddf gan Senedd y Deyrnas Unedig” yn cynnwys Deddf gan Senedd Prydain Fawr neu gan Senedd Lloegr”;
“Senedd Cymru (<i>Senedd Cymru</i>)	ystyr “Senedd Cymru” yw’r senedd ar gyfer Cymru a sefydlwyd gan adran 1 o Ddeddf Llywodraeth Cymru 2006 (p. 32) (ac a enwyd yn wreiddiol yn Gynulliad Cenedlaethol Cymru)”.

- (8) Yn lle “Deddf Cynulliad” a “Ddeddf Cynulliad”, ym mhob lle y maent yn ymddangos ar ôl i’r diwygiadau yn is-baragraffau (3) a (7) gael eu gwneud, rhodder “Deddf gan Senedd Cymru” neu “Ddeddf gan Senedd Cymru” yn ôl y digwydd, ac yn adran 37(2)(a), yn lle “Deddf dros dro gan y Cynulliad” rhodder “Deddf dros dro gan Senedd Cymru”.
- (9) Yn lle “Deddfau’r Cynulliad” a “Ddeddfau’r Cynulliad”, ym mhob lle y maent yn ymddangos, rhodder “Deddfau Senedd Cymru” neu “Ddeddfau Senedd Cymru” yn ôl y digwydd.

"Senedd Commission (Comisiwn y Senedd)	"Senedd Commission" means the Commission established by section 27 of the Government of Wales Act 2006 (c. 32) (and originally known as the National Assembly for Wales Commission)";
"Senedd Cymru (Senedd Cymru)	"Senedd Cymru" means the parliament for Wales established by section 1 of the Government of Wales Act 2006 (c. 32) (and originally known as the National Assembly for Wales)".

- (8) For "Assembly Act", in each place where it appears after the amendments in subparagraphs (3) and (7) have been made, substitute "Act of Senedd Cymru".
- (9) For "Assembly Acts", in each place where it appears, substitute "Acts of Senedd Cymru".

ATODLEN 2
(a gyflwynir gan adran 28)

Y COMISIWN ETHOLIADOL: DIWYGIADAU PELLACH

Deddf Cynrychiolaeth y Bobl 1983 (p. 2)

- 1 (1) Mae Atodlen 4A i Ddeddf 1983 wedi ei diwygio fel a ganlyn.
- (2) Ym mharagraff 14(1), ar ôl “code of practice” mewnosoder “for elections other than local government elections in Wales”.
- (3) Ar ôl paragraff 14 mewnosoder –
 - “14A(1) The Electoral Commission (“the Commission”) may prepare, and from time to time revise, a code of practice for local government elections in Wales giving –
 - (a) guidance as to the matters which do, or do not, fall within Part 1 or Part 2 of this Schedule;
 - (b) guidance (supplementing the definition in section 90ZA(3)) as to the cases or circumstances in which expenses are, or are not, to be regarded as incurred for the purposes of a candidate's election.
 - (2) Once the Commission have prepared a draft code under this paragraph, they must submit it to the Welsh Ministers for approval.
 - (3) The Welsh Ministers may approve a draft code with or without modifications.
 - (4) Once the Welsh Ministers have approved a draft code they must lay a copy of the draft, in the form in which they have approved it, before Senedd Cymru.
 - (5) If the draft incorporates modifications, the Welsh Ministers must at the same time lay before Senedd Cymru a statement of their reasons for making them.
 - (6) If, within the 40-day period, Senedd Cymru resolves not to approve the draft, the Welsh Ministers must take no further steps in relation to it.
 - (7) If no such resolution is made within the 40-day period –
 - (a) the Welsh Ministers must issue the code in the form of the draft laid before Senedd Cymru,
 - (b) the code comes into force on the date appointed by the Welsh Ministers by order, and
 - (c) the Commission must arrange for the code to be published in such manner as the Commission think appropriate.
 - (8) Sub-paragraph (6) does not prevent a new draft code from being laid before Senedd Cymru.

SCHEDULE 2
(introduced by section 28)

ELECTORAL COMMISSION: FURTHER AMENDMENTS

Representation of the People Act 1983 (c. 2)

- 1 (1) Schedule 4A to the 1983 Act is amended as follows.
- (2) In paragraph 14(1), after “code of practice” insert “for elections other than local government elections in Wales”.
- (3) After paragraph 14 insert—
- “14A(1) The Electoral Commission (“the Commission”) may prepare, and from time to time revise, a code of practice for local government elections in Wales giving—
- (a) guidance as to the matters which do, or do not, fall within Part 1 or Part 2 of this Schedule;
- (b) guidance (supplementing the definition in section 90ZA(3)) as to the cases or circumstances in which expenses are, or are not, to be regarded as incurred for the purposes of a candidate's election.
- (2) Once the Commission have prepared a draft code under this paragraph, they must submit it to the Welsh Ministers for approval.
- (3) The Welsh Ministers may approve a draft code with or without modifications.
- (4) Once the Welsh Ministers have approved a draft code they must lay a copy of the draft, in the form in which they have approved it, before Senedd Cymru.
- (5) If the draft incorporates modifications, the Welsh Ministers must at the same time lay before Senedd Cymru a statement of their reasons for making them.
- (6) If, within the 40-day period, Senedd Cymru resolves not to approve the draft, the Welsh Ministers must take no further steps in relation to it.
- (7) If no such resolution is made within the 40-day period—
- (a) the Welsh Ministers must issue the code in the form of the draft laid before Senedd Cymru,
- (b) the code comes into force on the date appointed by the Welsh Ministers by order, and
- (c) the Commission must arrange for the code to be published in such manner as the Commission think appropriate.
- (8) Sub-paragraph (6) does not prevent a new draft code from being laid before Senedd Cymru.

- (9) In this paragraph, “the 40-day period”, in relation to a draft code, means the period of 40 days beginning with the day on which the draft is laid before Senedd Cymru, no account being taken of any period during which Senedd Cymru is dissolved or is in recess for more than four days.
- (10) In this paragraph references to a draft code include a revised draft code.”

Deddf Pleidiau Gwleidyddol, Etholiadau a Refferenda 2000 (p. 41)

- 2 Mae Deddf Pleidiau Gwleidyddol, Etholiadau a Refferenda 2000 wedi ei diwygio fel a ganlyn.
- 3 (1) Mae adran 6 wedi ei diwygio fel a ganlyn.
- (2) Yn is-adran (3)(b), ar ôl “Scottish Parliament” mewnosoder “, Senedd Cymru”.
- (3) Yn is-adran (6) –
 - (a) ym mharagraff (a) –
 - (i) yn is-baragraff (i), ar y diwedd mewnosoder “other than those mentioned in paragraph (d) of that subsection”;
 - (ii) yn is-baragraff (ii), hepgorer “or Wales”;
 - (b) ym mharagraff (b), hepgorer “and those under Part II of the Local Government Act 2000”.
- 4 Ar ôl adran 6 mewnosoder –

“6ZA Reviews of devolved electoral matters in Wales

- (1) The Commission must keep the matters mentioned in subsection (2) under review, and must from time to time submit reports on those matters to the Welsh Ministers.
- (2) The matters are such matters as the Commission may from time to time determine relating to –
 - (a) general elections of Members of the Senedd;
 - (b) elections under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) local government elections in Wales;
 - (d) referendums under Part 2 of the Local Government Act 2000 and Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to executive arrangements of local authorities in Wales);
 - (e) the law relating to the elections and referendums mentioned in paragraphs (a) to (d).

- (9) In this paragraph, “the 40-day period”, in relation to a draft code, means the period of 40 days beginning with the day on which the draft is laid before Senedd Cymru, no account being taken of any period during which Senedd Cymru is dissolved or is in recess for more than four days.
- (10) In this paragraph references to a draft code include a revised draft code.”

Political Parties, Elections and Referendums Act 2000 (c. 41)

2 The Political Parties, Elections and Referendums Act 2000 is amended as follows.

3 (1) Section 6 is amended as follows.

(2) In subsection (3)(b), after “Scottish Parliament” insert “, Senedd Cymru”.

(3) In subsection (6) –

(a) in paragraph (a) –

(i) in sub-paragraph (i), at the end insert “other than those mentioned in paragraph (d) of that subsection”;

(ii) in sub-paragraph (ii), omit “or Wales”;

(b) in paragraph (b), omit “and those under Part II of the Local Government Act 2000”.

4 After section 6 insert –

“6ZA Reviews of devolved electoral matters in Wales

(1) The Commission must keep the matters mentioned in subsection (2) under review, and must from time to time submit reports on those matters to the Welsh Ministers.

(2) The matters are such matters as the Commission may from time to time determine relating to –

(a) general elections of Members of the Senedd;

(b) elections under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);

(c) local government elections in Wales;

(d) referendums under Part 2 of the Local Government Act 2000 and Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to executive arrangements of local authorities in Wales);

(e) the law relating to the elections and referendums mentioned in paragraphs (a) to (d).

- (3) Subsection (4) applies if the Welsh Ministers request the Commission to review and report on any matter or matters for which provision is or could be made in an Act of Senedd Cymru (whether or not falling within subsection (2)).
- (4) The Commission must, within such time as the Welsh Ministers may specify –
 - (a) review the matters specified in the request, and
 - (b) submit a report on those matters to the Welsh Ministers.
- (5) The Commission must publish each report made under this section in such manner as the Commission may determine."

5 Yn adran 6C(3), ar ôl "6F" mewnosoder "or 6G".

6 Yn adran 6D(4), ar ôl "6F" mewnosoder "or 6G".

7 (1) Mae adran 6F wedi ei diwygio fel a ganlyn.

(2) Yn is-adran (1), ar ôl "section 6A" mewnosoder ", other than those specified in subsection (2) of section 6G,".

(3) Yn is-adran (10), ar ôl "this section" mewnosoder "and section 6G".

8 Ar ôl adran 6F mewnosoder –

"6G Code of practice on attendance of observers at devolved elections in Wales

- (1) The Commission must prepare a code of practice on the attendance at elections specified in subsection (2) of –
 - (a) representatives of the Commission,
 - (b) accredited observers, and
 - (c) nominated members of accredited organisations.
- (2) The code must make provision about attendance at –
 - (a) general elections of Members of the Senedd;
 - (b) elections under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) local government elections in Wales.
- (3) The code must in particular –
 - (a) specify the manner in which applications under sections 6C(1) and 6D(1) are to be made to the Commission;
 - (b) specify the criteria to be taken into account by the Commission in determining such applications;
 - (c) give guidance to relevant officers (within the meaning of section 6E) as to the exercise of the power conferred by subsection (1) of that section;

- (3) Subsection (4) applies if the Welsh Ministers request the Commission to review and report on any matter or matters for which provision is or could be made in an Act of Senedd Cymru (whether or not falling within subsection (2)).
- (4) The Commission must, within such time as the Welsh Ministers may specify –
 - (a) review the matters specified in the request, and
 - (b) submit a report on those matters to the Welsh Ministers.
- (5) The Commission must publish each report made under this section in such manner as the Commission may determine.”

5 In section 6C(3), after “6F” insert “or 6G”.

6 In section 6D(4), after “6F” insert “or 6G”.

7 (1) Section 6F is amended as follows.

- (2) In subsection (1), after “section 6A” insert “, other than those specified in subsection (2) of section 6G,”.
- (3) In subsection (10), after “this section” insert “and section 6G”.

8 After section 6F insert –

“6G Code of practice on attendance of observers at devolved elections in Wales

- (1) The Commission must prepare a code of practice on the attendance at elections specified in subsection (2) of –
 - (a) representatives of the Commission,
 - (b) accredited observers, and
 - (c) nominated members of accredited organisations.
- (2) The code must make provision about attendance at –
 - (a) general elections of Members of the Senedd;
 - (b) elections under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) local government elections in Wales.
- (3) The code must in particular –
 - (a) specify the manner in which applications under sections 6C(1) and 6D(1) are to be made to the Commission;
 - (b) specify the criteria to be taken into account by the Commission in determining such applications;
 - (c) give guidance to relevant officers (within the meaning of section 6E) as to the exercise of the power conferred by subsection (1) of that section;

- (d) give guidance to such officers as to the exercise of the power mentioned in subsection (2) of that section as it relates to a person having the permission mentioned in subsection (1) of that section;
 - (e) give guidance to such officers as to the exercise of any power under any enactment to control the number of persons present at any proceedings relating to an election as it relates to a person having such permission;
 - (f) give guidance to representatives of the Commission, accredited observers and nominated members of accredited organisations on the exercise of the rights conferred by sections 6A, 6B, 6C and 6D.
 - (4) The code may make different provision for different purposes.
 - (5) Before preparing the code, the Commission must consult the Welsh Ministers.
 - (6) The Commission must lay the code before Senedd Cymru.
 - (7) The Commission must publish the code (in such manner as the Commission may determine).
 - (8) The following persons must have regard to the code in exercising any function conferred by section 6A, 6B, 6C, 6D or 6E in relation to an election specified in subsection (2) –
 - (a) the Commission;
 - (b) representatives of the Commission;
 - (c) relevant officers (within the meaning of section 6E).
 - (9) The Commission may at any time revise the code.
 - (10) Subsections (4) to (7) apply in relation to a revision of the code as they apply in relation to the code.”
- 9 (1) Mae adran 9A wedi ei diwygio fel a ganlyn.
- (2) Yn is-adran (1)(a), ar ôl “relevant officers” mewnosoder “mentioned in subsection (2)”.
- (3) Ar ôl is-adran (5) mewnosoder –
- “(5A) In relation to electoral registration officers for areas in Wales, the reference to their functions in subsection (2)(a) is a reference to their functions in relation to registers of parliamentary electors.”
- (4) Yn is-adran (6) –
- (a) ym mharagraff (a), ar y diwedd mewnosoder “other than one mentioned in paragraph (d) of that subsection”;
 - (b) hepgorer paragraff (d);
 - (c) ym mharagraff (e), hepgorer “or Wales”.
- (5) Yn is-adran (7), hepgorer paragraff (b).
- (6) Yn is-adran (8) –

- (d) give guidance to such officers as to the exercise of the power mentioned in subsection (2) of that section as it relates to a person having the permission mentioned in subsection (1) of that section;
 - (e) give guidance to such officers as to the exercise of any power under any enactment to control the number of persons present at any proceedings relating to an election as it relates to a person having such permission;
 - (f) give guidance to representatives of the Commission, accredited observers and nominated members of accredited organisations on the exercise of the rights conferred by sections 6A, 6B, 6C and 6D.
 - (4) The code may make different provision for different purposes.
 - (5) Before preparing the code, the Commission must consult the Welsh Ministers.
 - (6) The Commission must lay the code before Senedd Cymru.
 - (7) The Commission must publish the code (in such manner as the Commission may determine).
 - (8) The following persons must have regard to the code in exercising any function conferred by section 6A, 6B, 6C, 6D or 6E in relation to an election specified in subsection (2) –
 - (a) the Commission;
 - (b) representatives of the Commission;
 - (c) relevant officers (within the meaning of section 6E).
 - (9) The Commission may at any time revise the code.
 - (10) Subsections (4) to (7) apply in relation to a revision of the code as they apply in relation to the code.”
- 9 (1) Section 9A is amended as follows.
- (2) In subsection (1)(a), after “relevant officers” insert “mentioned in subsection (2)”.
 - (3) After subsection (5) insert –
 - “(5A) In relation to electoral registration officers for areas in Wales, the reference to their functions in subsection (2)(a) is a reference to their functions in relation to registers of parliamentary electors.”
 - (4) In subsection (6) –
 - (a) in paragraph (a), at the end insert “other than one mentioned in paragraph (d) of that subsection”;
 - (b) omit paragraph (d);
 - (c) in paragraph (e), omit “or Wales”.
 - (5) In subsection (7), omit paragraph (b).
 - (6) In subsection (8) –

- (a) yn y geiriau o flaen paragraff (a), ar ôl “sections” mewnosoder “9AA,”;
- (b) ym mharagraff (b), ar ôl “subsection (6)” mewnosoder “or section 9AA(6)”;
- (c) ym mharagraff (c), ar ôl “subsection (7)” mewnosoder “or section 9AA(7)”.

10 Ar ôl adran 9A mewnosoder –

“9AA Performance standards for devolved elections and referendums in Wales

- (1) The Commission may from time to time –
 - (a) determine standards of performance for relevant officers mentioned in subsection (2), and
 - (b) publish, in such form and in such manner as they consider appropriate, the standards so determined.
- (2) The standards of performance are such standards as the Commission think ought to be achieved by –
 - (a) electoral registration officers for areas in Wales in the performance of their functions in relation to registers of local government electors;
 - (b) returning officers in the administration of the elections specified in subsection (6);
 - (c) counting officers in the administration of the referendums specified in subsection (7).
- (3) Before determining standards under subsection (1), the Commission must consult –
 - (a) the Welsh Ministers, and
 - (b) any other person they think appropriate.
- (4) The Commission may determine different standards for different descriptions of relevant officers.
- (5) When the Commission publish standards under subsection (1) they must send a copy to the Welsh Ministers who must lay a copy before Senedd Cymru.
- (6) The elections specified in this subsection are –
 - (a) a general election of Members of the Senedd;
 - (b) an election under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) a local government election in Wales.
- (7) The referendums specified in this subsection are referendums under Part 2 of the Local Government Act 2000 or Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to executive arrangements of local authorities in Wales).”

11 Yn adran 9B, yn is-adrannau (1) a (4), ar ôl “9A(1)” mewnosoder “or 9AA(1)”.

- (a) in the words before paragraph (a), after “sections” insert “9AA,”;
- (b) in paragraph (b), after “subsection (6)” insert “or section 9AA(6)”;
- (c) in paragraph (c), after “subsection (7)” insert “or section 9AA(7)”.

10 After section 9A insert –

“9AA Performance standards for devolved elections and referendums in Wales

- (1) The Commission may from time to time –
 - (a) determine standards of performance for relevant officers mentioned in subsection (2), and
 - (b) publish, in such form and in such manner as they consider appropriate, the standards so determined.
- (2) The standards of performance are such standards as the Commission think ought to be achieved by –
 - (a) electoral registration officers for areas in Wales in the performance of their functions in relation to registers of local government electors;
 - (b) returning officers in the administration of the elections specified in subsection (6);
 - (c) counting officers in the administration of the referendums specified in subsection (7).
- (3) Before determining standards under subsection (1), the Commission must consult –
 - (a) the Welsh Ministers, and
 - (b) any other person they think appropriate.
- (4) The Commission may determine different standards for different descriptions of relevant officers.
- (5) When the Commission publish standards under subsection (1) they must send a copy to the Welsh Ministers who must lay a copy before Senedd Cymru.
- (6) The elections specified in this subsection are –
 - (a) a general election of Members of the Senedd;
 - (b) an election under section 10 of the Government of Wales Act 2006 (elections for Senedd constituency vacancies);
 - (c) a local government election in Wales.
- (7) The referendums specified in this subsection are referendums under Part 2 of the Local Government Act 2000 or Part 4 of the Local Government (Wales) Measure 2011 (referendums relating to executive arrangements of local authorities in Wales).”

11 In section 9B, in subsections (1) and (4), after “9A(1)” insert “or 9AA(1)”.

- 12 Yn adran 9C(2) –
- (a) ym mharagraff (b), ar ôl “9A(6)” mewnosoder “or 9AA(6)”;
 - (b) ym mharagraff (c), ar ôl “9A(7)” mewnosoder “or 9AA(7)”.
- 13 Yn adran 13(12), ar ôl “met under” mewnosoder “paragraph 16A of Schedule 1 to this Act or”.
- 14 (1) Mae Atodlen 1 wedi ei diwygio fel a ganlyn.
- (2) Ym mharagraff 14 –
- (a) yn is-baragraff (1) –
 - (i) ar ôl paragraff (a) mewnosoder –

“(aa) met out of the Welsh Consolidated Fund under paragraph 16A;”;
 - (ii) ym mharagraff (b), hepgorer “or 20(12)”;
 - (iii) ym mharagraff (c), yn lle “National Assembly for Wales” rhodder “Senedd”;
 - (b) ar ôl is-baragraff (6) mewnosoder –

“(6A) An estimate prepared under this paragraph must not include income or expenditure that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums (as to which, see paragraph 16A).”
- (3) Ym mharagraff 15, ar ôl is-baragraff (5) mewnosoder –

“(6) A plan prepared under this paragraph must not include aims, objectives or estimated requirements for the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums (as to which, see paragraph 16B).”
- (4) Ym mharagraff 20, ar ôl is-baragraff (1) mewnosoder –

“(1A) The reference in sub-paragraph (1) to the Commission’s functions does not include the Commission’s functions in relation to devolved Welsh elections or devolved Welsh referendums.”

- 12 In section 9C(2) –
- (a) in paragraph (b), after “9A(6)” insert “or 9AA(6)”;
(b) in paragraph (c), after “9A(7)” insert “or 9AA(7)”.
- 13 In section 13(12), after “met under” insert “paragraph 16A of Schedule 1 to this Act or”.
- 14 (1) Schedule 1 is amended as follows.
- (2) In paragraph 14 –
- (a) in sub-paragraph (1) –
 - (i) after paragraph (a) insert –

“(aa) met out of the Welsh Consolidated Fund under paragraph 16A;”;
 - (ii) in paragraph (b), omit “or 20(12)”;
 - (iii) in paragraph (c), for “National Assembly for Wales” substitute “Senedd”;
 - (b) after sub-paragraph (6) insert –

“(6A) An estimate prepared under this paragraph must not include income or expenditure that is attributable to the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums (as to which, see paragraph 16A).”
- (3) In paragraph 15, after sub-paragraph (5) insert –

“(6) A plan prepared under this paragraph must not include aims, objectives or estimated requirements for the exercise of the Commission’s functions in relation to devolved Welsh elections and devolved Welsh referendums (as to which, see paragraph 16B).”
- (4) In paragraph 20, after sub-paragraph (1) insert –

“(1A) The reference in sub-paragraph (1) to the Commission’s functions does not include the Commission’s functions in relation to devolved Welsh elections or devolved Welsh referendums.”

ATODLEN 3
(a gyflwynir gan adran 29)

ATODLEN 1A NEWYDD I DDEDDF LLYWODRAETH CYMRU 2006

Mae'r Atodlen hon yn pennu Atodlen 1A newydd i Ddeddf 2006, i'w mewnosod o flaen Atodlen 2 i'r Ddeddf honno.

"SCHEDULE 1A

Section 16

DISQUALIFICATION FROM BEING A MEMBER OF THE SENEDD OR
A CANDIDATE IN AN ELECTION TO BE A MEMBER OF THE
SENEDD

PART 1

CATEGORIES OF PERSONS DISQUALIFIED

Persons under 18 years of age

- 1 A person who has not attained the age of 18 before the day on which the person is nominated as a candidate for election as a Member of the Senedd.

Citizenship

- 2 (1) A person who is not –
 - (a) a British citizen,
 - (b) a qualifying Commonwealth citizen,
 - (c) a qualifying foreign citizen,
 - (d) a citizen of the Republic of Ireland, or
 - (e) a citizen of the European Union who is resident in the United Kingdom.
- (2) For the purposes of sub-paragraph (1), a person is a qualifying Commonwealth citizen if that person is a Commonwealth citizen who either –
 - (a) is not a person who requires leave under the Immigration Act 1971 (c. 77) to enter or remain in the United Kingdom, or
 - (b) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) indefinite leave to remain within the meaning of that Act.
- (3) For the purposes of sub-paragraph (1), a qualifying foreign citizen is a person resident in the United Kingdom who –
 - (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a citizen of the European Union, and
 - (b) either –

SCHEDULE 3
(introduced by section 29)

NEW SCHEDULE 1A TO THE GOVERNMENT OF WALES ACT 2006

This Schedule sets out the new Schedule 1A to the 2006 Act, to be inserted before Schedule 2 to that Act.

“SCHEDULE 1A

Section 16

DISQUALIFICATION FROM BEING A MEMBER OF THE SENEDD OR
A CANDIDATE IN AN ELECTION TO BE A MEMBER OF THE
SENEDD

PART 1

CATEGORIES OF PERSONS DISQUALIFIED

Persons under 18 years of age

- 1 A person who has not attained the age of 18 before the day on which the person is nominated as a candidate for election as a Member of the Senedd.

Citizenship

- 2 (1) A person who is not –
- (a) a British citizen,
 - (b) a qualifying Commonwealth citizen,
 - (c) a qualifying foreign citizen,
 - (d) a citizen of the Republic of Ireland, or
 - (e) a citizen of the European Union who is resident in the United Kingdom.
- (2) For the purposes of sub-paragraph (1), a person is a qualifying Commonwealth citizen if that person is a Commonwealth citizen who either –
- (a) is not a person who requires leave under the Immigration Act 1971 (c. 77) to enter or remain in the United Kingdom, or
 - (b) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) indefinite leave to remain within the meaning of that Act.
- (3) For the purposes of sub-paragraph (1), a qualifying foreign citizen is a person resident in the United Kingdom who –
- (a) is not a Commonwealth citizen, a citizen of the Republic of Ireland or a citizen of the European Union, and
 - (b) either –

- (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) indefinite leave to remain within the meaning of that Act.
- (4) But a person is not a qualifying Commonwealth citizen by virtue of sub-paragraph (2)(a) or a qualifying foreign citizen by virtue of sub-paragraph (3)(b)(i) if that person does not require leave to enter or remain in the United Kingdom by virtue only of section 8 of the Immigration Act 1971 (exceptions to requirement for leave in special cases).

Bankruptcy

- 3 A person in respect of whom one or more of the following orders has effect—
- (a) a debt relief restrictions order or interim debt relief restrictions order under Schedule 4ZB to the Insolvency Act 1986 (c. 45) or Schedule 2ZB to the Insolvency (Northern Ireland) Order 1989 (S.I. 1989/2405 (N.I. 19));
 - (b) a bankruptcy restrictions order or an interim bankruptcy restrictions order under Schedule 4A to the Insolvency Act 1986, Part 13 of the Bankruptcy (Scotland) Act 2016 (asp 21) or Schedule 2A to the Insolvency (Northern Ireland) Order 1989.
- 4 A person who is disqualified from being a member of the House of Commons under section 427 of the Insolvency Act 1986 because of an award of sequestration made by a court in Scotland.

Persons guilty of corrupt or illegal practices at elections

- 5 A person who is incapable of being elected to the House of Commons having been reported personally guilty or convicted of a corrupt or illegal practice under the Representation of the People Act 1983 (c. 2).

Persons imprisoned or detained following conviction etc.

- 6 (1) A person found guilty of one or more offences (whether before or after the passing of this Act and whether in the United Kingdom or elsewhere), and sentenced or ordered to be imprisoned or detained indefinitely or for more than one year.
- (2) A person is disqualified under this paragraph only while the person is—

- (i) is not a person who requires leave under the Immigration Act 1971 to enter or remain in the United Kingdom, or
 - (ii) is such a person but for the time being has (or is, by virtue of any enactment, to be treated as having) indefinite leave to remain within the meaning of that Act.
- (4) But a person is not a qualifying Commonwealth citizen by virtue of sub-paragraph (2)(a) or a qualifying foreign citizen by virtue of sub-paragraph (3)(b)(i) if that person does not require leave to enter or remain in the United Kingdom by virtue only of section 8 of the Immigration Act 1971 (exceptions to requirement for leave in special cases).

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- (2) A person is disqualified under this paragraph only while the person is—

- (a) detained anywhere in the United Kingdom, the Channel Islands, the Isle of Man, or elsewhere in the European Union, in pursuance of the sentence or order, or
- (b) unlawfully at large at a time when the person would otherwise be so detained.

Sex offenders

- 7 A person subject to the notification requirements of, or an order under, Part 2 of the Sexual Offences Act 2003 (c. 42).

PART 2

OFFICES THAT DISQUALIFY THE HOLDER

TABLE

<i>Offices and bodies in respect of which there are disqualifying offices</i>	<i>The disqualifying offices</i>
Armed forces	Members of the Royal Navy, the Royal Marines, the regular army (as defined by section 374 of the Armed Forces Act 2006 (c. 52)) or the Royal Air Force, not including— (a) an officer on the retired or emergency list of any of the regular armed forces of the Crown, (b) a person who holds an emergency commission in any of those forces, (c) a person who belongs to any reserve of officers of any of those forces, (d) a naval, army, marine or air force pensioner, or former soldier who is liable to be recalled for service, or (e) a person who is an Admiral of the Fleet, a Field Marshal or a Marshal of the Royal Air Force and does not for the time being hold an appointment in the naval, military or air force service of the Crown
Auditor General for Wales or Archwilydd Cyffredinol Cymru	The Auditor General
Children's Commissioner for Wales or Comisiynydd Plant Cymru	The Commissioner and deputy Commissioner

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Auditor General for Wales or Archwilydd Cyffredinol Cymru	The Auditor General
Children's Commissioner for Wales or Comisiynydd Plant Cymru	The Commissioner and deputy Commissioner

Civil service	Members of the civil service of the State, including the civil service of Northern Ireland, the Northern Ireland Court Service, Her Majesty's Diplomatic Service and Her Majesty's Overseas Civil Service
Civil Service Commission	The First Civil Service Commissioner and Civil Service Commissioners
Commission for Equality and Human Rights	The Commissioners
Commissioner for Older People in Wales or Comisiynydd Pobl Hŷn Cymru	The Commissioner and deputy Commissioner
Commissioner for Public Appointments	The Commissioner
Comptroller and Auditor General or Rheolwr ac Archwilydd Cyffredinol	The Comptroller and Auditor General
Electoral Commission or Comisiwn Etholiadol	The Electoral Commissioners and members of the staff of the Commission
Electoral Registration Officers	Electoral registration officer for any area in Wales
Future Generations Commissioner for Wales or Comisiynydd Cenedlaethau'r Dyfodol Cymru	The Commissioner
Her Majesty's Chief Inspector of Education and Training in Wales or Prif Arolygydd Ei Mawrhydi dros Addysg a Hyfforddiant yng Nghymru	The Chief Inspector
Independent Remuneration Board of the Senedd or Bwrdd Taliadau Annibynnol y Senedd	The members of the Board

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Independent Remuneration Panel for Wales or Panel Annibynnol Cymru ar Gydnabyddiaeth Ariannol	The members of the Panel
Judicial offices	The following judicial offices – (a) Judge of the Supreme Court; (b) Judge of the High Court or Court of Appeal in England and Wales; (c) Judge of the Court of Session or Temporary Judge in Scotland; (d) Judge of the High Court or Court of Appeal in Northern Ireland; (e) Judge of the Court Martial Appeal Court; (f) Chairman of the Scottish Land Court; (g) Circuit Judge in England and Wales; (h) Sheriff principal, sheriff, summary sheriff, temporary sheriff principal, part-time sheriff or part-time summary sheriff in Scotland; (i) County Court Judge or deputy County Court Judge in Northern Ireland; (j) District Judge (Magistrates' Courts) (but not Deputy District Judge (Magistrates' Courts)) in England and Wales; (k) District judge (magistrates' courts) or deputy district judge (magistrates' courts) in Northern Ireland; (l) President of Welsh Tribunals or Llywydd Tribiwnlysoedd Cymru; (m) Judge of the Upper Tribunal; (n) legal member of the Upper Tribunal for Scotland; (o) Chief or other Child Support Commissioner for Northern Ireland or deputy Child Support Commissioner for Northern Ireland; (p) Chief or other Social Security Commissioner for Northern Ireland or deputy Social Security Commissioner for Northern Ireland
Legislatures	Members of the legislature of any country or territory outside the United Kingdom
Lieutenancies	Lord-lieutenant or lieutenant of any area in Wales

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Legislatures	Members of the legislature of any country or territory outside the United Kingdom
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Local Democracy and Boundary Commission for Wales or Comisiwn Ffiniau a Democratiaeth Leol Cymru	The members and chief executive of the Commission
Parliamentary Commissioner for Administration	The Commissioner
Police forces	Members of any police force maintained by – (a) a local policing body (within the meaning given by section 101 of the Police Act 1996 (c. 16)), (b) the Scottish Police Authority, or (c) the Northern Ireland Policing Board, and “member” in relation to a police force means a person holding office as a constable of that force
Public Services Ombudsman for Wales or Ombwdsmon Gwasanaethau Cyhoeddus Cymru	The Ombudsman
Returning officers for Senedd elections	The returning officer for any Senedd constituency or Senedd electoral region
Senedd Commission	Members of the staff of the Senedd
Senedd Commissioner for Standards or Comisiynydd Safonau y Senedd	The Commissioner
Sheriffs	The high sheriff of any area in Wales
Welsh Language Commissioner or Comisiynydd y Gymraeg	The Commissioner, the Deputy Commissioner and the members of the Advisory Panel to the Welsh Language Commissioner”

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